Date: October 15, 2026

To,
BSE Limited,
Corporate Relationship Department
Floor 25, P. J. Towers,
Dalal Street, Mumbai 400 001
BSE Scrip Code: 530355

To,
NSE Limited,
Manager- Listing Compliance
Exchange Plaza, Plot No. C/1, G Block, Bandra
Kurla Complex, Bandra (East), Mumbai 400 051
Trading Symbol: ASIANENE

Dear Sir/Madam,

Sub: Receipt of certified true copy of the final order by the Hon'ble National Company Law Tribunal, Mumbai Bench ('Hon'ble Tribunal') in the matter of Scheme of Merger by Absorption of Oilmax Energy Private Limited ('OEPL' or Transferor Company') with Asian Energy Services Limited ('AESL' or 'Transferee Company' or 'the Company') and their respective shareholders ('Scheme').

This is with reference to our earlier communication dated Wednesday, September 30, 2026, regarding the sanction of the Scheme by the Hon'ble Tribunal under Sections 230 to 232 read with Section 66 and other applicable provisions of the Companies Act, 2013 ('Act') and the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ('the Rules') made thereunder.

In this regard we wish to inform you that today on **Thursday, October 15, 2026**, the Company has received the certified true copy of the final order pronounced by the Hon'ble Tribunal after its hearing held on Tuesday, September 29, 2026.

A copy of the said final order is enclosed for your records and is also uploaded on the website of the Company.

We request you to take the above on record and disseminate the same on your website.

Thanking you,

Yours sincerely,

For Asian Energy Services Limited

SHWETA VAIBHAV JAIN
Digitally signed by SHWETA VAIBHAV JAIN
Date: 2026.10.15 18:36:15 +05'30'

Shweta Jain
Company Secretary & Compliance Officer
Membership No.: 23368

Enclosure: as above

IN THE NATIONAL COMPANY LAW TRIBUNAL
MUMBAI BENCH-I

CP (CAA) NO. 95/MB/2026
IN
CA (CAA) NO. 49/MB/2026

In the matter of
The Companies Act, 2013 (18 of 2013)
and
In the matter of Sections 230 to 232 read with Section 234 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016;
and
In the matter of Scheme of Merger by Absorption of Oilmax Energy Private Limited ("Transferor Company" or "First Petitioner Company") having CIN U40101MH2008PTC185357 with Asian Energy Services Limited ("Transferee Company" or "Second Petitioner Company") having CIN L23200MHI992PLC318353 and their respective shareholders ("Scheme")

OILMAX ENERGY PRIVATE LIMITED
CIN: U4010 I MH2008PTC185357
...First Petitioner Company / Transferor Company

And

ASIAN ENERGY SERVICES LIMITED
CIN: L23200MH1992PLC3 I 8353
... Second Petitioner Company/Transferee Company

[collectively referred to as the "Applicant Companies"]

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ORDER PRONOUNCED ON

29.09.2026

Coram:

Sh. Prabhat Kumar	**Sh. Sushil Mahadeorao Kochey**
Hon'ble Member (Technical)	Hon'ble Member (Judicial)

Appearances:

For the Applicant Companies : Adv. Rohit Gupta a/w CA Harsh Ruparelia i/b M/s. A R C H and Associates

ORDER

1. Heard the learned Counsel for the Petitioner Companies.
2. The present Company Scheme Petition has been filed in the matter of the Scheme of Merger by Absorption of ***Oilmax Energy Private Limited*** ('The First Petitioner Company/ Transferor Company') with ***Asian Energy Services Limited*** ('The Second Applicant Company/ The Transferee Company) and their respective shareholders and creditors under sections 230 to 232 of the Companies Act, 2013. The First Petitioner Company and The Second Petitioner Company are collectively referred to as **'The Applicant Companies'**.
3. **Petitioner Company No. 1/Transferor Company** bearing CIN **U40lOlMH2008PTC185357** was incorporated on 02.08.2008 under the Companies Act, 1956, as a Private Limited Company presently having registered office at G-101, Ground Floor, Runwal & Omkar Esquare, Off. Eastern Express Highway, Chunabhatti Signal, Sion East, Mumbai - 400 022.
4. It is submitted that the First Petitioner Company is engaged in the business of exploration, development, and production of oil and gas assets. The First Petitioner Company focuses on the development of oil and gas blocks in India having discovered and proven oil and gas reserves. It has established a diversified portfolio of onshore oil and gas assets, with varying participating

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interests in five (5) oil and gas blocks, including one Coal Bed Methane (CBM) block. The First Petitioner Company has further expanded its business into the mineral sector and has acquired a quartzite block in India. In addition, through its subsidiary, the First Petitioner Company has also ventured into the business of advanced agriculture.

5. **Petitioner Company No. 2/ Transferee Company** bearing CIN **L232OOMH1992PLC318353** was incorporated on 09.03.1992 as a Private Limited Company, under provisions of Companies Act, 1956. The Registered Office of the Transferee Company is presently situated at 3B, 3rd Floor, Runwal & Omkar Esquare, Off. Eastern Express Highway, Chunabhatti Signal, Sion East, Mumbai - 400 022.
6. It is submitted that the Second Petitioner Company is an oil and gas industry service provider, offering end-to-end services across the entire **upstream** value chain. Its services include geophysical data acquisition, production facility engineering, procurement and construction under the Build-Own-Operate-Transfer (BOOT) model, integrated oil and gas field development, operation and maintenance of enhanced oil recovery facilities, material handling, exploration, marine diesel oil, and other allied services. The Second Petitioner Company is a listed company, and its equity shares are listed on both BSE Limited and the National Stock Exchange of India Limited.
7. The Petitioner Companies have approved the Scheme of Merger by Absorption by passing board resolution in their respective board meetings conducted on 06.09.2025 have approved the Scheme.
8. The Appointed Date for the Scheme means 1st day of the month in which the Effective Date occurs or such other date as the Adjudicating Body(ies) may direct or fix.
9. The rationale for the scheme is as follows:

   "The Transferor Company is the holding company of the Transferee Company. Both the Transferor Company and the Transferee Company are engaged in the business related to energy and minerals sector specially oil

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& gas. The consolidation of both entities will have a diversified portfolio of assets and businesses in the merged entity, which would not only be engaged in business of production and development of oil & gas blocks with proven resources and minerals resources but also provide end to end strategic solutions to oil & gas and minerals industry with offering extending across the entire upstream value chain including but not limited to geophysical data acquisition, integrated oil & gas field development, operations and maintenance, production facility construction on EPC and/or build-own-operate-transfer model, enhanced oil recovery services, material handling and rapid loading systems, exploration services, manpower services and other customized solutions to energy and minerals sector. The proposed integration of the respective business activities of both entities in a single entity will enable the following:

23.1. The amalgamation will synergize the complementary strengths of both the Transferor Company and the Transferee Company. The consolidated entity would be able to create meaningful value for all stakeholders involved including shareholders of both the companies, employees, customers etc. as combined strengths and resources can be put to the best advantage. Further, the combined entity would benefit from the Transferee Company's expertise and proven track record of operations and maintenance, facility construction and related services, etc. and the Transferor Company's expertise in reservoir management, integrated field development, geological and geophysical strengths, etc.;

23.2. The proposed amalgamation will provide an opportunity to better leverage the combined assets and capital base, technical and operational capabilities to build a stronger and more sustainable business which will improve the potential for further growth and expansion of the business of the merged entity.

23.3. The proposed amalgamation will significantly strengthen the position of the combined entity in the industry in terms of assets base, geographical

reach, technical capabilities and financial capabilities. The proposed amalgamation will enable creation of leading energy and mineral company in India with a global footprint;

23.4. The proposed amalgamation will provide the Transferee Company access to diversified portfolio of proven oil & gas and minerals resources of the Transferor Company across different basins and geographies. The Transferee Company will get benefited from long term revenue and cashflow visibility of the Transferor Company assets;

23.5. The amalgamated entity will benefit from strengthened organizational leadership through the integration of management teams and personnel from both companies, who have vast experience, diverse skills and talent to compete effectively in an increasingly competitive oil & gas and minerals industry;

23.6. The combined entity will have greater operational efficiency through elimination of duplication/redundant functions, centralized and focused management, consolidating and optimizing resources under a unified leadership;

23.7. The combined entity will bring cost synergies with reduction in general and administrative expenses, reduction in compliance cost, bringing greater economies of scale in combined entity operations and optimization of resources;

23.8. The combined entity will have enhanced financial strengths with large net worth, strong asset base and balance sheet, greater efficiency in cash management, unfettered access to cash flow generated by the combined businesses, efficient capital allocation and better capital utilization. These enhanced financial strengths will help grow business at a faster rate with improved borrowing capabilities and reduced borrowing costs; and

23.9. The amalgamation will result in a simplified shareholding and group structure, thereby streamlining the ever-evolving regulatory compliance

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framework. It will improve corporate governance standard and bring more transparency.

Thus, the merger is in the interest of the shareholders, creditors and all other stakeholders of the companies and is not prejudicial to the interests of the concerned shareholders, creditors or the public at large."

10. Consideration:

Upon the Scheme becoming effective, and in consideration of the Merger by Absorption and the vesting of the business of the Transferor Company in the Transferee Company in accordance with the provisions of this Scheme, the Transferee Company shall, without any further application, act or deed, issue and allot to the shareholders of the Transferor Company whose names appear in the Register of Members of the Transferor Company as on the Record Date, or to such of their respective heirs, executors, administrators or successors-in-title, as may be recognised by the Board of Directors, shares in the Transferee Company in the following manner:

"117 (One hundred and seventeen) fully paid-up Equity Shares of Rs. 10/- each of the Transferee Company shall be issued and allotted for every 10 (Ten) fully paid-up Equity Shares of Rs. 10/- each of the Transferor Company." ("Share Exchange Ratio")."

11. A copy of the Fairness Opinion on the Share Exchange Ratios, issued by Sundae Capital Advisors Private Limited, a Category I Merchant Banker, dated 06.09.2025, has also been annexed.

12. Accounting Treatment Certificate issued by the Statutory Auditors:

The Petitioner Companies submit that the Statutory Auditors of the First Petitioner Company and the Second Petitioner Company have opined that the accounting treatment proposed under the Scheme is in conformity with the 'Pooling of Interests Method' prescribed under Appendix C to Ind AS 103 (Accounting for Business Combinations) and with the other applicable Indian Accounting Standards prescribed under Section 133 of the Companies Act, 2013.

13. The Equity Shares of the Second Petitioner Company are listed on BSE Limited ('the BSE') and National Stock Exchange of India Limited ('NSE'). The Second Petitioner Company submitted documents to BSE and NSE both on September 12, 2025. The Second Petitioner Company has received an observation letter from the BSE Limited on March 02, 2026 as,

    *"In light of the above, we hereby advise that we have no adverse observations with limited reference to those matters having a bearing on listing/de-listing/continuous listing requirements within the provisions of Listing Agreement, so as to enable the company to file the scheme with Hon'ble NCLT....*and National Stock Exchange of India Limited on March 05, 2026 as

    Based on the draft scheme and other documents submitted by the Company, including undertaking given in terms of Regulation 11 of SEBI (LODR) Regulations, 2015, we hereby convey our "No objection" in terms of Regulation 37 of SEBI (LODR) Regulations, 201 5, so as to enable the Company to file the draft scheme with NCLT."

14. The Petitioner Companies have complied with all requirements as per directions of this Tribunal vide order dated 03.06.2026 passed in **CA (CAA) NO. 49/MB/2026** and they have filed necessary affidavits of compliance before this Tribunal. Moreover, the Petitioner Companies have undertaken to comply with all the statutory requirements, if any, as may be required under the Companies Act, 2013 and the Rules made there under.

15. Petitioner Companies further submits that there are no investigation or proceedings instituted or are pending under the Companies Act, 1956 / Companies Act, 2013 against the Petitioner Companies or by any other regulatory authorities. Further, there are no material litigation pending against the Petitioner Companies which has bearing on the present Scheme. Furthermore, there are no winding-up petitions or petitions under the Insolvency and Bankruptcy Code, 2016 admitted against any of the Petitioner Companies

16. The Regional Director, Western Region-1, Mumbai, has filed his Report dated 24.07.2026, setting out certain observations in paragraphs 2(b) to 2(l) thereof, including the observations of the Registrar of Companies, Mumbai ("ROC"), as reproduced by the Regional Director in paragraph 2(b) of the Report. In response to the observations made by the Regional Director and the ROC, the Petitioner Companies have furnished the necessary clarifications and undertakings vide their affidavit in reply to the observations of the Regional Director dated 29.07.2026. The Petitioner Companies have submitted/undertaken as follows in response to the observations of the Regional Director, including those of the ROC :

    a. There is no inquiry or inquiry follow up or inspection follow up, investigation follow up, prosecutions, complaint pending against the Petitioner Companies. This is factual information, and no clarification is required for the same;
    b. The interest of creditors and employees is shall duly protected.
    c. The Petitioner Companies shall make the requisite compliances under the Companies Act, 2013 and the Rules made thereunder, as applicable, in the manner prescribed.
    d. Upon the Scheme becoming effective and the consequent dissolution of First Petitioner Company without winding up, the fees and stamp duty already paid by First Petitioner Company on their respective authorised share capital shall be eligible to be set off against the fees and stamp duty payable by the Transferee Company on its authorised share capital, in accordance with applicable laws. The Transferee Company shall comply with provisions of Section 232(3)(i) of the Companies Act, 2013 in this regard.
    e. Transferee Company shall duly pay any differential amount of fees and stamp duty, if and to the extent required, after giving effect to the above set-off.

f. The Petitioner Companies shall pass such accounting entries as stated in Indian Accounting Standard 103 ('Business Combinations' or 'IND AS 103') read with 'Pooling of Interest Method' as laid down in Appendix C (Business Combinations of entities under common control) of IND AS 103 as specified under Section 133, which are necessary, in connection with the Scheme to comply with the applicable Accounting Standards.

g. The Petitioner Companies shall comply with all the applicable Indian Accounting Standards such as IND AS-8 etc, as applicable to the Petitioner Companies.

h. The sanction of the Scheme by this Tribunal shall not deter any authorities to deal with any of the issues arising after giving effect to the Scheme and that such issues arising out of the Scheme will be met and answered in accordance with law and the decisions of such authorities shall be binding on the Petitioner Companies, subject to the rights and remedies available to the Petitioner Companies under the applicable law.

i. The Petitioner Companies shall strictly comply with all applicable directions, regulations, guidelines, and requirements of the concerned sectoral regulatory authorities, as may be applicable to this proposed Scheme of Amalgamation.

j. The Petitioner Companies shall comply with all lawful directions, requirements, and orders issued by the Income Tax Department and GST Department in relation to the Petitioner Companies, from time to time, as may be applicable under law.

k. The Transferee Company is listed on Bombay Stock Exchange ('BSE') and National Stock Exchange ('NSE') and shall comply with the observations pointed out by BSE vide its letter dated March 02, 2026 and NSE vide its letter dated March 05, 2026.

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17. The Official Liquidator, High Court, Bombay has filed his Report dated 30.07.2026, inter alia, has stated that the affairs of the Transferor Company have not been conducted in a manner prejudicial to the interest of its creditor or to public interest.

18. It is submitted that the First Petitioner Company has made an application to the Ministry of Petroleum and Natural Gas ("MoPNG") seeking approval of the Scheme. However, as on the date of this Order, the requisite approval from the MoPNG has not yet been received. It is pertinent to note that Clause 27.6 of the Scheme expressly provides that the Scheme is subject to obtaining the approval of the concerned Governmental Authorities, which *inter alia* includes the MoPNG. Accordingly, the Scheme shall remain subject to obtaining such approval.

19. The Asst. Commissioner of Income Tax Circle – 6(1)(2), Mumbai on behalf of The Income Tax Department, has filed its report dated September 02, 2026 ('IT Report'), praying that this Tribunal may pass such orders as it thinks fit, making certain observations in paragraphs 1 to 14 of the IT Report. In response to the observations made by the Income Tax Department, the Petitioner Companies have given necessary undertakings and clarifications *vide* their affidavit in reply to the observations of the Asst. Commissioner of Income Tax Circle – 6(1)(2), Mumbai dated September 03, 2026. The observations made by the Asst. Commissioner of Income Tax Circle – 6(1)(2) and the clarifications and undertakings given by the Petitioner Companies are summarized in the table below: The Petitioner Companies have submitted/undertaken as follows in response to the observations of the Regional Director, including those of the ROC :

    a. All pending and future proceedings relating to the Transferor Company shall stand continued against, and shall be enforceable against, the Second Petitioner Company in accordance with law, subject to the remedies available to the Second Petitioner Company under the Income-Tax Act, 1961 /the Income-Tax Act, 2025.

b. The Income-tax Department will be free to examine the aspect of any tax payable as a result of the Scheme and in case it is found that the scheme ultimately results in tax avoidance or is not in accordance to the provisions of the Income Tax Act, then the Department will be at liberty to initiate the appropriate course of action as per law.

20. Assam Company India Limited ("ACIL") has filed an affidavit before this Tribunal dated 5th August 2026, setting out its representations. It is submitted that ACIL operates an outfield in the Amguri Block, Assam, through a joint venture with Oilmax Energy Private Limited ("Oilmax"), the Transferor/First Petitioner Company herein. ACIL and Oilmax have entered into various agreements, including a Farmout Agreement dated 5th April 2021 ("FOA"), pursuant to which Oilmax acquired a 50% participating interest in the Amguri Block, and a Joint Operating Agreement dated 5th April 2021 ("JOA"), governing the conduct of joint operations in the Amguri Block.

21. ACIL had also entered into a Production Sharing Contract dated 23rd February 2001 ("PSC") with the Government of India, which constitutes the principal agreement governing the Amguri Block and has been amended from time to time. Oilmax was inducted as a party to the PSC pursuant to an amendment dated 10th May 2021 and is accordingly bound by the terms thereof as a Contractor holding a 50% participating interest. The FOA, JOA and PSC (collectively, the "Transaction Documents") govern the contractual relationship between ACIL and Oilmax, with Oilmax acting as the Operator and ACIL as the Non-Operator.

22. Asian Energy Services Limited ("AESL"), the Transferee/Second Petitioner Company, is an affiliate and subsidiary of Oilmax and has been engaged by Oilmax, in its capacity as the Operator, as the operations and maintenance ("O&M") contractor for the Amguri Block pursuant to an Operation and Maintenance Agreement dated 21st June 2023 ("OMA").

23. The objections raised by ACIL are as follows:

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a. Article 12.2 of the JOA and Article 14.10 of the FOA impose certain restrictions on the transfer of the participating interest of the Operator, Oilmax, including a requirement to obtain prior consent before effecting any such transfer.

b. Articles 29.1, 29.2 and 35 of the PSC also require the prior consent of the Government of India for the assignment or transfer of part or all of the participating interest.

c. It is the case of ACIL that certain transactions between Oilmax and AESL, which is an affiliate of Oilmax and its O&M contractor, are disputed on the ground that excessive amounts have been charged under such transactions. ACIL submits that, upon the Scheme becoming effective, all inter-party transactions between Oilmax and AESL, including any loans or amounts due between them, would be treated as intra-party transactions from the appointed date and would stand automatically extinguished. Further, all inter-company transactions between Oilmax and AESL would stand cancelled. According to ACIL, this would make it more difficult to trace, isolate and recover the alleged excess payments sought to be challenged by it, as the underlying transactions would no longer appear as distinct entries between two separate corporate entities.

24. The Petitioner Companies have filed an Affidavit-in-Reply dated 6th August 2026 submitting that they have already applied for the requisite approval from the Government and are presently awaiting the same. With regard to ACIL's contention that its prior written consent is required, the Petitioner Companies have submitted that the proposed amalgamation under the Scheme does not constitute a "transfer" within the meaning of the relevant Transaction Documents and, accordingly, no such consent is required. The Petitioner Companies have further submitted that the Scheme adequately safeguards and protects the rights and interests of ACIL under the relevant agreements and that

all rights, obligations and liabilities outstanding thereunder shall continue to remain binding and enforceable in accordance with the terms thereof.

25. Having considered the submissions of ACIL and Petitioner Companies, we consider it appropriate to clarify that all claims, disputes, rights and causes of action of ACIL against either or both of the Petitioner Companies arising under or in connection with the aforesaid Transaction Documents, whether or not quantified, invoked or instituted as on the Effective Date, shall subsist and remain unaffected by the Scheme and shall be enforceable against AESL, as the successor company. Further, AESL shall preserve and maintain, in their present form, all books of account, ledgers and documents pertaining to the transactions between Oilmax and AESL for a period of eight years from the Effective Date. As regards allegation of transfer requiring prior permission of ACIL, since the relevant agreement(s) are not placed before, and the proposed scheme of absorption is subject to regulatory approval, we are of considered view that such regulatory approval shall meet the end of justice. However, it is clarified that we have not adjudicated whether absorption of transferor company into transferee company falls within the ambit of 'transfer' contemplated under Article 12.2 of the JOA and Article 14.10 of the FOA.

26. Since the Scheme itself provides that its implementation is subject to obtaining the requisite approval from the Government authorities and further provides that, in the event such approval is not received, the Scheme shall not become effective unless such approval is in place, accoridngly, no separate direction in this regard is considered necessary.

27. We have perused the submissions made by the Petitioner Companies and the reports submitted by the Regional Director (RD) and the Official Liquidator (OL). The Petitioner Companies have undertaken to comply with all the undertakings made in their reply filed in response to the observations of the RD.

28. From the material on record, the Scheme appears to be fair and reasonable and is not in violation of any provisions of law and is not contrary to public policy

considering that no objection has so far been received from any other authority or creditors or members or any other stakeholders

29. The Second Petitioner Company undertakes that all legal and other legal proceedings of whatsoever nature, including civil proceedings, criminal proceedings, any enquiry, investigation, inspection, suit, appeal, or application before any court, judicial body, statutory authority, quasi-judicial authority, tribunal, or other authority, initiated by or against the First Petitioner Company, and pending as on the date on which the Scheme comes into effect, shall not abate, be discontinued, or be prejudicially affected by reason of the Scheme, and shall be prosecuted, continued, and enforced by or against the Second Petitioner Company, in the same manner and to the same extent as would or might have been prosecuted, continued, and enforced by or against the First Petitioner Company, as if the Scheme had not been made. Further, upon the Scheme becoming effective, the Second Petitioner Company undertakes to have all such legal or other proceedings transferred into its name as soon as reasonably possible, with effect from the Effective Date, and to have the same continued, prosecuted, and enforced by or against the Second Petitioner Company, to the exclusion of the First Petitioner Company, in accordance with Clause 19 of the Scheme

30. All the assets and liabilities including taxes and charges, if any and duties of the First Petitioner Company, as on the Appointed Date shall pursuant to section 232 of the Companies Act, 2013, be transferred to and become assets and liabilities and duties of the Second Petitioner Company.

31. Needless to say, all liabilities accruing in the transferor company shall be transferred to the Transferee Company, however, the liabilities in respect of the offences committed under this act by the officers in default, of the transferor company prior to its merger shall continue after such merger as provided in Section 240 of the Companies Act, 2013.

32. Upon the Scheme becoming effective, all tax liabilities, obligations, credits, refunds, benefits, and incentives of the First Petitioner Company under the

Income-tax Act and all other applicable tax laws, including GST, VAT, excise, customs, and other levies, as on and from the Appointed Date, shall stand transferred to and vest in the Second Petitioner Company. All taxes paid or payable, including TDS/TCS, advance tax, and GST, shall be deemed to have been paid or complied with by the Second Petitioner Company, and all corresponding credits, refunds, unutilized MAT/GST/service-tax credits, and other tax benefits shall likewise accrue to the Second Petitioner Company. The Second Petitioner Company shall be entitled to file or revise all tax returns, claim all eligible credits or refunds, and seek deductions for disallowed items in accordance with law. All tax assessments, disputes, and proceedings initiated or continuing against the First Petitioner Company shall henceforth be continued and enforced by or against the Second Petitioner Company, without abatement or prejudice

33. Since all the requisite statutory compliances have been fulfilled, Company Petition bearing **CP(CAA)/95/MB/2026 in CA(CAA)/49/(MB)/2026** is made absolute in terms of the prayer clauses of the said Company Scheme Petition. It shall be binding on the Petitioner Companies and all concerned, including their respective Shareholders, Creditors, Employees and/or any other stakeholders concerned.
34. The Transferor Company is dissolved without winding up.
35. The Petitioner Companies are directed to file a copy of this Order along with a copy of the Scheme of Arrangement with the concerned Registrar of Companies, electronically in E-Form INC-28, within 30 days from the date of receipt of the Order by the Petitioner Companies.
36. All the employees of the Transferor Company in service, on the date immediately preceding the date on which the Scheme takes effect i.e. the effective Date, shall become the employees of the Transferee Company on such date, without any break or interruption in service and upon terms and conditions not less favourable than those subsisting in the concerned Transferor Companies on the said date.

37. The Petitioner Companies to lodge a copy of this Order and the Scheme duly authenticated by the Deputy Registrar or Assistant Registrar, National Company Law Tribunal, Mumbai Bench, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty payable within 60 days from the receipt of the Order, if any.

38. The present Company Scheme Petition i.e. **C.P.(CAA)/95/MB/2026** in **C.A.(CAA)/49/MB/2026** is allowed and disposed of, ordered accordingly.

Sd/-

Prabhat Kumar

Member (Technical)

Vijay Andhale

Sd/-

Sushil Mahadeorao Kochey

Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
(MUMBAI BENCH)
CERTIFIED TO BE TRUE COPY
OF THE ORIGINAL

Diary No.: 3757
Date of Application : 08/10/2026
Date Copy Ready : 13/10/2026
Date of Delivery : 15/10/2026
No. of Pages : 16
Fee Paid : 80/-
Deficient Fee :
Total Fee Paid : 80/-

JR/DR/AR
(Signature & Seal)

Ravi H Passi
Assistant Registrar
National Company Law Tribunal
Mumbai - 400 005.

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Annexure 'E'

341

SCHEME OF MERGER BY ABSORPTION

OF

OILMAX ENERGY PRIVATE LIMITED

WITH

ASIAN ENERGY SERVICES LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS

This Scheme of Merger is presented under Sections 230 to 232 read with Section 66 and other applicable provisions of the Companies Act 2013 and Rules framed thereunder for Merger by Absorption of Oilmax Energy Private Limited ("OEPL" or Transferor Company") with Asian Energy Services Limited ("AESL" or "Transferee Company"). This Scheme also provides for various other matters consequential and otherwise integrally connected therewith.

The Scheme is divided into the following parts:

A. **Part I** deals with the Introduction, Rationale of the Scheme, Definitions, Interpretation and Share Capital;

B. **Part II** deals with Merger by Absorption of OEPL with AESL; and

C. **Part III** deals with the Dissolution of the Transferor Company, General Clauses and Terms and Conditions.

ASIAN ENERGY SERVICES LIMITED MUMBAI

OILMAX ENERGY PRIVATE LIMITED MUMBAI

OILMAX ENERGY PRIVATE LIMITED MUMBAI

NOTARY HEMANT R. JANGAM MUMBAI MAHARASHTRA Regn. No. 4762 Expiry Date 20-10-2027 GOVERNMENT OF INDIA

ASIAN ENERGY SERVICES LTD. MUMBAI

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PART I

INTRODUCTION, RATIONALE OF THE SCHEME, DEFINITIONS, INTERPRETATION AND SHARE CAPITAL

1. INTRODUCTION

1.1. OILMAX ENERGY PRIVATE LIMITED ("Transferor Company" or "OEPL")

1.1.1 OEPL having CIN: U40101MH2008PTC185357 was incorporated on 2nd August, 2008 under the provisions of the Companies Act, 1956.

1.1.2 The registered office of the Transferor Company is situated at G-101, Ground Floor, Runwal & Omkar Esquare, Off. Eastern Express Highway, Chunnabhatti Signal, Sion East, Mumbai - 400022, Maharashtra, India.

1.1.3 The Transferor Company is engaged in the business of exploration, development, and production of oil & gas assets. The Transferor Company focuses on developing oil & gas blocks in India with discovered and proven existing oil & gas reserves. It has created a diversified portfolio of onshore oil and gas assets with varied participating interest in 5 (five) oil & gas blocks (including one Coal Bed Methane (CBM) block). The Transferor Company has expanded its business in mineral sector and has acquired a quartzite block in India. The Transferor Company has interest in business of advance agriculture as well through its subsidiary.

1.1.4 The Transferor Company is an unlisted private limited company.

1.1.5 The Transferor Company holds 60.83% shares of AESL.

1.1.6 The main objects of the Transferor Company as per its memorandum of association are as follows:

1. *"To undertake and carry in India and abroad, the business of producers, suppliers, buyers, sellers, dealers, traders, importers, exporters, miners, explores, drillers, distributors, consultants, surveyors, values, advisors of all forms of energy products and resources conventional and/or non-conventional, renewable. on land and/ or off shore such as Oil, Gas, Hydro Carbon Products, Air, Solar, Thermal, Hydel, Tidal."*

2. *"To acquire by purchase, lease, sell or otherwise the land for farming and to establish and run farms and carry on the business of agriculture, horticulture, dairy farming, animal husbandry, importing, exporting and dealing in all kinds of product of such business and Processing, storage, transport and miscellaneous logistics activities associated with the supply chain of the products produced, manufactured, or grown and to focus on Research & Development and deployment of technology based products and services, weather on mobile, or computer or machinery to the business of agriculture act as dealers, retailers, distributers etc of agricultural products and technology used in farming and to render technical services, consultancy Services, Training, Research and development and to invest or subscribe for purchase or otherwise acquire and sell, dispose of, exchange, hold and otherwise deal in shares or other securities of other agricultural and related companies."*

1.2 ASIAN ENERGY SERVICES LIMITED ("Transferee Company" or "AESL")

1.2.1 AESL having CIN: L23200MH1992PLC318353, was originally incorporated as a company under the name of "Asian Oilfield Services Limited" under the provisions of the Companies Act, 1956 on 09th March, 1992. The name of the company has been changed from Asian Oilfield Services Limited to its present name, Asian Energy Services Limited and a fresh Certificate of Incorporation consequent on change of name dated 1st October, 2020 was issued by the Registrar of Companies, Maharashtra, Mumbai.

1.2.2 The registered office of the Transferee Company is situated at 3B, 3rd Floor, Omkar Esquare, Chunabhatti Signal, Eastern Express Highway, Sion - East, Mumbai - 400022, Maharashtra, India.

1.2.3 The Transferee Company is an oil and gas industry service provider, offering end-to-end services which extend across the entire upstream value chain, including geophysical data acquisition, production facility, engineering, procurement and construction using the build-own-operate-transfer model, integrated oil and gas field development, and enhanced oil recovery facility operation and maintenance, material handling, exploration, marine diesel oil & other services.

1.2.4 The Transferee Company is a listed company and its shares are listed on both BSE Limited and National Stock Exchange of India Limited.

1.2.5 The main objects of Transferee Company as per its memorandum of association are as follows:

1. *To carry on, in India or elsewhere in the World, with or without collaboration and/ or through its subsidiaries, associates or Joint Ventures with any entity, the business to manufacture, produce, process, reprocess, pack, repack, press, engrave, develop, design, assemble, alter, repair, renovate, galvanize, paint, cut, clean, convert, fit, fabricate, erect, install, serve, improve, manipulate, decorate, adapt, test, explore, consult, market, distribute, buy, sell, resell, purchase, import, export, indent, trade, and/or to act as manufacturers' representative and otherwise deal in all types and kinds of drilling rigs, mining equipment, mud pumps, oil exploring equipment and equipment relating to manufacture, production, distribution, storage, processing, re-processing, designing, re-designing, developing of any kind of energy resources and their accessories and/or to undertake to render all kinds and types of services relating to the discovery, exploration, exploitation, production, transportation, packaging, marketing, sale and distribution of Oil and Natural Gas Resources including but not restricted to Project Management services, Consultancy and Advisory services, Engineering and Technical Support services,*

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Technical surveys including services related to Seismic Surveys, Testing, Drilling, Data acquisition, analysis and processing; engineering services of Oil/Gas wells and fields Operations and Management, Maintenance and servicing thereof and of related other equipment, Technical and support Staffing services and Renting or Leasing of Technical Equipment, Machineries and Accessories for Oil and Gas related activities, to any entity.

2. *To carry on, in India or elsewhere in the World, with or without collaboration and/or through its subsidiaries, associates or joint ventures with any entity, the business to manufacture, produce, process, reprocess, pack, repack, press, engrave, develop, design, assemble, alter, repair, renovate, galvanize, paint, cut, clean, convert, fit, fabricate, erect, install, serve, improve, manipulate, decorate, adapt, test, explore, consult, market, distribute, buy, sell, resell, purchase, import, export, indent, trade, and/or to act as manufacturers' representative and otherwise deal in all types and kinds of equipment and any other products relating to manufacture, production, distribution, processing, re-processing, designing, re-designing, developing of Coke and Coal, Minerals and/or any other conventional and non-conventional resources relating to management and production of energy and their accessories and/or to undertake to render all kinds and types of services relating to the discovery, exploration, exploitation, production, transportation, packaging, marketing, sale and distribution of Coke and Coal, Minerals and any other resources including but not restricted to project management services, consultancy and advisory services, engineering and technical support services, technical surveys; engineering services of energy field operations and management, maintenance and servicing thereof and of related other equipment, technical and support staffing services and renting or leasing of technical equipment, machineries and accessories for energy related activities, to any entity.*

3. *To generate, accumulate, transmit, distribute, purchase, sell and supply electric power or any other energy from conventional/non-conventional energy and energy derivative including renewable energy sources and their related infrastructure for distribution including personal mobility, or another means/ source on a commercial basis and to construct, lay down, establish, operate and maintain power/energy generating stations*

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including buildings, structures, works, machineries, equipments, cables, wires, lines, accumulators, lamps, and works and to undertake or to carry on the business of managing, owning, controlling, erecting, distributing, commissioning, operating, running, leasing or transferring of plants and infrastructure based on conventional or non-conventional energy source.

4. *To carry on the business of purchase, sale, manufacture, process, import, export, buyers, sellers, traders, merchants, distribution, deal in, to act as indent or agent, commission agent, distributors, wholesalers, retailers, broker, contractor, or otherwise deal with raw and process materials, semi products and end products of Coal, Coke, Oil and Gas and any other energy products and energy products of all kinds & specification, Minerals and other allied items and industrial raw materials.*

2. RATIONALE FOR THE SCHEME

The Transferor Company is the holding company of the Transferee Company. Both the Transferor Company and the Transferee Company are engaged in the business related to energy and minerals sector specially oil & gas. The consolidation of both entities will have a diversified portfolio of assets and businesses in the merged entity, which would not only be engaged in business of production and development of oil & gas blocks with proven resources and minerals resources but also provide end to end strategic solutions to oil & gas and minerals industry with offering extending across the entire upstream value chain including but not limited to geophysical data acquisition, integrated oil & gas field development, operations and maintenance, production facility construction on EPC and/or build-own-operate-transfer model, enhanced oil recovery services, material handling and rapid loading systems, exploration services, manpower services and other customized solutions to energy and minerals sector. The proposed integration of the respective business activities of both entities in a single entity will enable the following:

2.1. The amalgamation will synergize the complementary strengths of both the Transferor Company and the Transferee Company. The consolidated entity would be able to create meaningful value for all stakeholders involved including shareholders of both the

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companies, employees, customers etc. as combined strengths and resources can be put to the best advantage. Further, the combined entity would benefit from the Transferee Company's expertise and proven track record of operations and maintenance, facility construction and related services, etc and the Transferor Company's expertise in reservoir management, integrated field development, geological and geophysical strengths, etc.;

2.2. The proposed amalgamation will provide an opportunity to better leverage the combined assets and capital base, technical and operational capabilities to build a stronger and more sustainable business which will improve the potential for further growth and expansion of the business of the merged entity;

2.3. The proposed amalgamation will significantly strengthen the position of the combined entity in the industry in terms of assets base, geographical reach, technical capabilities and financial capabilities. The proposed amalgamation will enable creation of leading energy and mineral company in India with a global footprint;

2.4. The proposed amalgamation will provide the Transferee Company access to diversified portfolio of proven oil & gas and minerals resources of the Transferor Company across different basins and geographies. The Transferee Company will get benefited from long term revenue and cashflow visibility of the Transferor Company assets;

2.5. The amalgamated entity will benefit from strengthened organizational leadership through the integration of management teams and personnel from both companies, who have vast experience, diverse skills and talent to compete effectively in an increasingly competitive oil & gas and minerals industry;

2.6. The combined entity will have greater operational efficiency through elimination of duplication/redundant functions, centralized and focused management, consolidating and optimizing resources under a unified leadership;

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2.7. The combined entity will bring cost synergies with reduction in general and administrative expenses, reduction in compliance cost, bringing greater economies of scale in combined entity operations and optimization of resources;

2.8. The combined entity will have enhanced financial strengths with large net worth, strong asset base and balance sheet, greater efficiency in cash management, unfettered access to cash flow generated by the combined businesses, efficient capital allocation and better capital utilization. These enhanced financial strengths will help grow business at a faster rate with improved borrowing capabilities and reduced borrowing costs; and

2.9. The amalgamation will result in a simplified shareholding and group structure, thereby streamlining the ever-evolving regulatory compliance framework. It will improve corporate governance standard and bring more transparency.

Thus, the merger is in the interest of the shareholders, creditors and all other stakeholders of the companies and is not prejudicial to the interests of the concerned shareholders, creditors or the public at large.

3. TAX TREATMENT OF THE SCHEME FOR THE PURPOSE OF INCOME-TAX ACT, 1961

3.1. This Scheme has been drawn up to comply with the conditions relating to amalgamation as specified under section 2(1B) and other relevant provisions of the Income-tax Act, 1961. If any terms or provisions of the Scheme are found or interpreted to be inconsistent with the provisions of the said section and other related provisions at a later date including resulting from a retrospective amendment of law or for any other reason whatsoever, till the time the Scheme become effective, the provisions of the said section and other related provisions of the Income-tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) and other relevant provisions of the Income-tax Act, 1961.

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4. **DEFINITIONS**

In this Scheme, unless inconsistent with the subject or context, the following expression shall have the following meanings:

4.1 **"Act"** means the Companies Act, 2013, along with rules and regulations issued thereunder, including, any statutory modifications, re-enactments or amendments made thereto from time to time.

4.2 **"Adjudicating Body(ies)"** means the Hon'ble National Company Law Tribunal, Mumbai Bench (NCLT) and the National Company Law Appellate Tribunal (NCLAT), as constituted and authorised as per the provisions of the Act for approving any scheme of arrangement, compromise or reconstruction of companies under section 230 to 232 read with Section 66 of the Act or any other authority having jurisdiction under the Act to sanction the scheme.

4.3 **"AESL"** or **"Transferee Company"** means Asian Energy Services Limited incorporated under the provisions of the Companies Act, 1956 and having its registered office at 3B, 3rd Floor, Omkar Esquare, Chunabhatti Signal, Eastern Express Highway, Sion - East, Mumbai - 400022, Maharashtra, India. The Permanent Account Number of the Transferee Company is AABCA7958F.

4.4 **"Amalgamation"** means the amalgamation as specified under Section 2(1B) of the Income-tax Act, 1961.

4.5 **"Applicable Law(s)"** or **"Law(s)"** means (a) applicable statutes, enactments, acts of legislature or parliament, laws, ordinances, rules, bye- laws, regulations, listing agreements, notifications (b) writ, injunction, directions, directives, judgement, arbitral award, decree, orders or approvals of, or agreements with, any Governmental Authority or recognized stock exchange, orders or instructions having force of law enacted or issued or sanctioned by any Governmental Authority including any modification or re-enactment thereof for the time being in force;

4.6 **"Appointed Date"** means 1st day of the month in which the Effective Date occurs or such other date as the Adjudicating Body(ies) may direct or fix, for the purpose of Amalgamation of the Transferor Company with the Transferee Company under this Scheme.

4.7 **"Board"** or **"Board of Directors"** means the board of directors of the Transferor Company or the Transferee Company as the case may be, and shall, unless it is repugnant to the context or otherwise, include a committee of directors or any person authorized by the board of

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directors or such committee of directors.

4.8 **"BSE"** shall mean BSE Limited, the stock exchange on which the shares of the Transferee Company are listed.

4.9 **"Effective Date"** means the last of the dates on which the certified copies of the order(s) of the Adjudicating Body, are filed with the Registrar of Companies, Maharashtra, Mumbai. All references in this Scheme to the date of "coming into effect of this Scheme" or "Effectiveness of the Scheme" or "Scheme taking effect" or "Scheme becoming effective" shall mean the Effective Date.

4.10 **"Encumbrance"** means (i) any mortgage, charge (whether fixed or floating), pledge, lien, conditional sales contract, hypothecation, assignment, deed of trust, title retention, security interest or other encumbrance or interest of any kind securing, or conferring any priority of payment in respect of any obligation of any person, including any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security under Applicable Law; (ii) a contract to give or refrain from giving any of the foregoing; (iii) any voting agreement, interest, option, right of first offer, refusal or transfer restriction in favour of any person; and (iv) any adverse claim as to title, possession or use; and the terms "Encumbered", "Encumber" shall be construed accordingly.

4.11 **"ESOP"** means the Employee Stock Options Plan.

4.12 **"Financial Statements"** include standalone and consolidated accounts, i.e., balance sheet, statement of profit & loss, cash flow statement and notes to accounts of the Transferor Company and the Transferee Company, as the context may require.

4.13 **"Governmental Authority(ies)"** means: (a) any national, federal, provincial, state, city, municipal, county or local government, governmental authority or political subdivision thereof, which for the avoidance of doubt shall also include Ministry of Petroleum and Natural Gas, Government of India; (b) any agency or instrumentality of any of the authorities referred to in clause (a); (c) any non-governmental regulatory or administrative authority, body or other organization, to the extent that the rules, regulations, standards, requirements, procedures or orders of such authority, body or other organization have the force of Law; or (d) any court or tribunal having jurisdiction and including, without limitation or prejudice to the generality of the foregoing, the NCLT, SEBI, Stock Exchanges and any tax authority.

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4.14 **"IT Act"** means the Indian Income-tax Act, 1961 and shall include any statutory modifications, re-enactments, or amendments thereof for the time being in force.

4.15 **"LODR"** means the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 issued by the Securities and Exchange Board of India.

4.16 **"NCLT Order"** shall mean the order of the Hon'ble National Company Law Tribunal, Mumbai Bench sanctioning the Scheme.

4.17 **"New Shares"** means shares issued by the Transferee Company to the shareholders of the Transferor Company as a consideration for the Amalgamation.

4.18 **"NSE"** shall mean National Stock Exchange of India Limited, the stock exchange on which the shares of the Transferee Company are listed.

4.19 **"OEPL"** or **"Transferor Company"** means Oilmax Energy Private Limited, a company incorporated under the provisions of the Companies Act, 1956 and having its registered office situated at G-101, Ground Floor, Runwal & Omkar Esquare, Off. Eastern Express Highway, Chunnabhatti Signal, Sion East, Mumbai - 400022, Maharashtra, India. The Permanent Account Number of the Transferor Company is AABCO0715A.

4.20 **"Record Date"** means the date to be fixed by the Board of Directors of the Transferor Company in consultation with the Board of Directors of the Transferee Company for the purpose of reckoning name of the equity shareholders of the Transferor Company who shall be entitled to receive the New Shares to be issued by the Transferee Company and for any other purpose as provided in this Scheme.

4.21 **"ROC"** means the Registrar of Companies, Maharashtra, Mumbai having jurisdiction in relation to both the Transferor Company and the Transferee Company.

4.22 **"Scheme"** or **"the Scheme"** or **"this Scheme"** means this Scheme of Merger by Absorption in its present form submitted to the relevant Adjudicating Body with modification(s), approved or imposed or directed by the relevant Adjudicating Body.

4.23 **"SEBI"** means Securities and Exchange Board of India.

4.24 **"SEBI Circulars"** means the circulars issued by SEBI in relation to the amalgamations and arrangements carried under the Act and shall inter-alia include SEBI Master Circular no. SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated June 20, 2023 including any amendments, if any.

4.25 **"Stock Exchanges"** means NSE and BSE.

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4.26 **"Transferee Company ESOP Plans"** means Asian ESOP Plans 2025.

4.27 **"Transferee Company Stock Options"** means the employee stock options granted by the Transferee Company under Transferee Company ESOP Plans.

4.28 **"Transferor Company ESOP Plans"** means Oilmax ESOP Plans 2025.

4.29 **"Transferor Company Stock Options"** means the employee stock options granted by the Transferor Company under the Transferor Company ESOP Plans.

All terms and expressions which are used in this Scheme but not defined herein shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act, the IT Act, the Securities Contracts (Regulation) Act 1956, the Depositories Act, 1996 (as the case may be) or other Applicable Law, rules, regulations, bye laws, as the case may be, including any statutory amendments, modification or re-enactment thereof, from time to time.

5. INTERPRETATION

5.1 In this Scheme, unless the context otherwise requires:

5.1.1 Words denoting singular shall include plural and vice versa;

5.1.2 Headings and bold type face are only for convenience and shall be ignored for the purposes of interpretation;

5.1.3 References to the word "include" or "including" shall be construed without limitation;

5.1.4 A reference to an article, clause, section, paragraph or schedule is, unless indicated to the contrary a reference to an article, clause, section, paragraph or schedule of this Scheme;

5.1.5 Unless otherwise defined, reference to the word "days" shall means calendar days;

5.1.6 References to dates and times shall be construed to be references to Indian dates and times;

5.1.7 Reference to a document includes an amendment or supplement to, or replacement or novation of that document;

5.1.8 Word(s) and expression(s) elsewhere defined in the Scheme will have the meaning(s) respectively ascribed to them; and

5.1.9 References to a person include any individual, firm, body corporate (whether incorporated or not), government, state or agency of a state or any joint-venture, association, partnership,

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works council or employee representatives' body (whether or not having separate legal personality).

6. DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Adjudicating Body and/or by the Board of Directors in terms of Clause 27 shall although be operative from the Effective Date but shall be deemed to be retrospectively effective from the Appointed Date in accordance with the provisions of Section 232(6) of the Act.

7. SHARE CAPITAL

7.1 The Share Capital of the Transferor Company as on 31st August, 2025 is as under:

Particulars	(Amount in Rs.)
Authorised Share Capital	
60,20,000 Equity Shares of Rs. 10/- each	6,02,00,000
Total	**6,02,00,000**
Issued, Subscribed and Paid-up Capital :	
56,97,244 Equity Shares of Rs. 10/- each fully paid-up	5,69,72,440
Total	**5,69,72,440**

The aforesaid issued, subscribed, and paid-up share capital of the Transferor Company does not include Transferor Company Stock Options outstanding for exercise under the Transferor Company ESOP Plans that have been issued by the Transferor Company. Upon exercise of the Transferor Company Stock Options in accordance with the terms and conditions of the relevant Transferor Company ESOP Plans, the Transferor Company shall be required to issue fully paid-up equity shares of the Transferor Company in accordance with the terms and conditions of the Transferor Company ESOP Plans and accordingly the

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issued, subscribed, and paid-up share capital of the Transferor Company may undergo a change.

7.2 The Share Capital of the Transferee Company as on 31st August, 2025 is as under:

Particulars	(Amount in Rs.)
Authorised Share Capital	
5,00,00,000 Equity Shares of Rs. 10/- each	50,00,00,000
Total	**50,00,00,000**
Issued, Subscribed and Paid-up Capital:	
4,47,74,444 Equity shares of Rs.10/- each fully paid up	44,77,44,440
Total	**44,77,44,440**

The aforesaid issued, subscribed, and paid-up share capital of the Transferee Company does not include (i) the stock options outstanding under the Transferee Company's ESOP Plans and (ii) fully convertible warrants issued by the Transferee Company through preferential allotment, which remain outstanding as on date. Upon exercise of the stock options in accordance with the terms and conditions of the relevant Transferee Company's ESOP Plans, the Transferee Company shall be required to issue fully paid-up equity shares, and accordingly, the issued, subscribed, and paid-up share capital of the Transferee Company may undergo a corresponding change. Similarly, the outstanding fully convertible warrants, issued through preferential allotment, shall continue to be governed by their respective terms and conditions and may, upon exercise, result in further issuance of equity shares and corresponding changes to the share capital of the Transferee Company.

The Equity Shares of the Transferee Company are listed on Stock Exchanges.

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7.3 As on date of the approval of the Scheme by the Board of Directors of the Transferor Company and the Transferee Company, the capital structure of the Transferor Company and the Transferee Company is same as mentioned in clause 7.1 and 7.2 respectively.

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PART II

MERGER BY ABSORPTION OF THE TRANSFEROR COMPANY WITH THE TRANSFEREE COMPANY

8. TRANSFER AND VESTING OF ASSETS AND LIABILITIES OF THE TRANSFEROR COMPANY INTO THE TRANSFEREE COMPANY

8.1 The Transferor Company shall, with effect from the Appointed Date and upon this Scheme becoming effective, without any further act or deed, be merged with the Transferee Company and the entire business of the Transferor Company shall stand transferred to and vested in or deemed to have been transferred to or vested in Transferee Company, as a going concern pursuant to the provisions of Sections 230 to 232 read with Section 66 of the Act and other applicable provisions of the relevant Act and in accordance with the provisions of sections 2(1B) of the IT Act and the provisions of this Scheme in relation to the mode of transfer and vesting of assets. This Scheme involves a "Merger by Absorption" in terms of the Explanation provided in Section 232 of the Act and shall be deemed to be regarded as an "Amalgamation" in terms of Section 2(1B) of the IT Act.

8.2 The assets of the Transferor Company which are moveable in nature or incorporeal/ intangible property or are otherwise capable of transfer by physical or constructive delivery and/or by endorsement and delivery or by vesting and recordal of whatsoever nature, including plant and machinery, equipment, production plans, shall be so transferred by the Transferor Company and shall become the property of the Transferee Company without requiring any separate deed or instrument or conveyance for the same to the end and intent that the property and benefits therein passes to the Transferee Company. The vesting pursuant to this sub-clause shall be deemed to have occurred by physical or constructive delivery or by endorsement and delivery or by vesting and recordal, pursuant to this Scheme, as appropriate to the property being vested and title to the property shall be deemed to have been transferred accordingly.

8.3 The assets of the Transferor Company on the Appointed Date shall, upon the Scheme coming into effect, without any further act, instrument or deed, be transferred to and vested in and/or

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be deemed to be transferred and vested in the Transferee Company pursuant to the provisions of Sections 230 to 232 read with Section 66 of the Companies Act, 2013 and other applicable provisions of the Act and the vesting of all such assets shall take place with effect from the Appointed Date upon the Scheme becoming effective.

8.4 The other movable properties of the Transferor Company, including investments in shares and any other securities, sundry debtors, actionable claims, earnest monies, receivables, bills, credits, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, bank balances and deposits (including deposits from members), if any, with government, semi-government, local and other authorities and bodies, customers and other persons, shall without any further act, instrument or deed, become the property of the Transferee Company, and the same shall also be deemed to have been transferred by way of delivery of possession of the respective documents in this regard. It is hereby clarified that investments, if any, made by Transferor Company and all the rights, title and interest of the Transferor Company in any leasehold properties shall, pursuant to Section 232 of the Act and the provisions of this Scheme, without any further act or deed, be transferred to and vested in and/or be deemed to have been transferred to and vested in the Transferee Company.

8.5 The immovable properties of the Transferor Company, including land together with the buildings and structures standing thereon and rights and interests in immovable properties of the Transferor Company, whether freehold or leasehold or otherwise and all documents of title, rights and easements in relation thereto, shall be vested in and/or be deemed to have been vested in the Transferee Company, without any further act or deed done or being required to be done by the Transferor Company and/or the Transferee Company. The Transferee Company shall be entitled to exercise all rights and privileges attached to the aforesaid immovable properties and shall be liable to pay the ground rent and taxes and fulfil all obligations in relation to or applicable to such immovable properties. The relevant authorities shall grant all clearances/permissions, if any, required for enabling the Transferee Company to absolutely own and enjoy the immovable properties in accordance with Applicable Law. The mutation or substitution of the title to the immovable properties shall, upon this Scheme becoming effective, be made and duly recorded in the name of the Transferee Company by

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Governmental Authorities pursuant to the sanction of this Scheme by the Adjudicating Body and upon the Scheme becoming effective in accordance with the terms hereof.

8.6 For the avoidance of doubt and without prejudice to the generality of Clause 8.5 above and Clause 8.7 below, it is clarified that, with respect to the immovable properties of the Transferor Company in the nature of land and buildings, the Transferor Company and/or the Transferee Company shall register the true copy of the orders of the Adjudicating Body approving the Scheme with the offices of the relevant sub-registrar or similar registering authority having jurisdiction over the location of such immovable property and shall also execute and register, as required, such other documents as may be necessary in this regard. For the avoidance of doubt, it is clarified that any document executed pursuant to this Clause 8.5 above and Clause 8.7 below will be for the limited purpose of meeting regulatory requirements and shall not be deemed to be a document under which the transfer of any property of the Transferor Company takes place and the assets and liabilities of the Transferor Company shall be transferred solely pursuant to and in terms of this Scheme and the order of the Adjudicating Body sanctioning this Scheme.

8.7 Notwithstanding anything contained in this Scheme, with respect to the immovable properties of the Transferor Company in the nature of land and buildings located outside the States/territory where registered office address of the Transferor Company is situated as on the Effective Date, whether owned or leased, for the purpose of, *inter alia*, payment of stamp duty and vesting in the Transferee Company, if the Transferee Company so decides, the Transferor Company and/ or the Transferee Company, whether before or after the Effective Date, as the case may be, may execute and register or cause to be executed and registered, separate deeds of conveyance or deeds of assignment of lease, as the case may be, in favour of the Transferee Company in respect of such immovable properties. Each of the immovable properties, only for the purposes of the payment of stamp duty (if required under Applicable Law), shall be deemed to be conveyed at a value determined by the relevant authorities in accordance with the applicable circle rates. The transfer of such immovable properties shall form an integral part of this Scheme.

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8.8 The Transferee Company shall stand substituted in and shall always be deemed to have been a party to all agreements (including gas sale agreement and crude oil sale agreement) production sharing contracts, government approvals, term sheet, memorandums of understanding, deeds, contracts, acceptance letters, no objection certificates/ undertakings, handover documents/ certificates, revenue sharing contracts, interests in oil blocks, gas fields, interests in operating agreements / joint operating agreements/ farm out agreements, right of way and use to lay/ use/ maintain pipelines, petroleum exploratory licenses, exploratory rights, mining lease(s), forest clearances, environmental clearances, state and central statutory approvals or other specific licenses for exploration, development and production of oil and gas, land ownership/ leases for oil & gas and seismic operations, rights of use in land, authorizations, permits, approvals, entitlements, subsidies, grants including any indemnities, bonds, letter of credit, guarantees, insurances, labour licenses, registration and identification number under the Applicable Law or other similar rights and entitlements whatsoever, etc. of whatever nature and wheresoever situated to which the Transferor Company is a party, including any benefits to which the Transferor Company may be eligible or entitled, and subsisting or being effective on or immediately before the Effective Date (collectively referred to as "Agreements") and all such Agreements and all interests therein shall remain in full force and effect against or in favour of the Transferee Company and shall be binding on and be enforceable by and against the Transferee Company as fully and effectually as if the Transferee Company had been a party thereto. The Transferee Company, if so required, shall provide certified copies of the NCLT Order sanctioning the Scheme to the counter parties to the Agreements and such relevant regulatory/ statutory/ Governmental Authorities including but not limited to Ministry of Petroleum and Natural Gas for information purposes and such parties and relevant regulatory/ statutory/ Governmental Authorities shall make and duly record the necessary substitution or endorsement in the name of the Transferee Company as successor, pursuant to such orders without any break in the validity and enforceability of such Agreement. However, till the time such substitution/ endorsement is actually effected, the Transferee Company shall always be deemed to be a party to all such Agreements and be allowed to operate in the name and style of the Transferor Company. It is hereby clarified that all rates, fees, bank guarantees/security deposits in favour of relevant authority, profit/ revenue sharing, etc. paid by the Transferor Company till the Effective Date shall be considered paid

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by or for the Transferee Company and shall be considered part of total sum payable under such Agreement and the Transferee Company shall not be called upon or required to pay the same again.

8.9 All letters of intent, letter of awards, award of contracts, requests for proposal, pre-qualifications, bid acceptances, tenders, net worth criteria for bids, business experience/ experience certificates, and other instruments of whatsoever nature to which the Transferor Company is a party to or to the benefit of which the Transferor Company is eligible, shall remain in full force and effect against or in favour of the Transferee Company and may be enforced as if the Transferee Company had been a party or beneficiary thereto instead of the Transferor Company.

8.10 All contingent assets, potential rights, future claims, receivables, and entitlements of the Transferor Company, whether currently recognized or not, and whether capable of being valued or not at the present time, any other similar rights, shall stand transferred to, vested in, and be available to the Transferee Company, to the extent legally permissible, and shall be pursued, enforced, or enjoyed by the Transferee Company as if the same had been originally made by, entered into, or belonged to the Transferee Company.

8.11 For avoidance of doubt and without prejudice to the generality of the foregoing it is clarified that upon the Scheme coming into effect, all approvals, permits, quotas, environmental approval and consents, permissions (municipal and any other statutory permission), licences, accreditations to trade and industrial bodies, privileges, powers, facilities, certificates, clearances, membership, subscriptions, entitlements, incentives, engagements, remissions, remedies, power, facilities, rehabilitation schemes, authorities, subsidies, concession, special status and other benefits or privileges (granted by any Governmental Authorities or by any other person) any exemptions or waivers of every kind and description of whatsoever nature, powers of attorney given by, issued to or executed in favour of the Transferor Company, shall stand transferred to the Transferee Company as if the same were originally given by; issued to or executed in favour of the Transferee Company; and the Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

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8.12 As a consequence of the Amalgamation of the Transferor Company with the Transferee Company in accordance with this Scheme, the recording of change in name from the Transferor Company to the Transferee Company, whether for the purposes of any licence, permit, approval or any other reason, or whether for the purposes of any transfer, registration, mutation or any other reason, shall be carried out by the concerned statutory or regulatory or any other authority without the requirement of payment of any transfer or registration fee or any other charge or imposition whatsoever.

8.13 Without prejudice to the other provisions of this Scheme, the Transferor Company may, at any time after the Scheme becoming effective, in accordance with the provisions hereof if required by any Applicable Law or otherwise take such actions or execute such documents or deeds or make such applications to the Governmental Authorities or any third person for the purposes of transfer/vesting of the approvals, sanctions, consents, permits, rights, entitlements, contracts or arrangements to which the Transferor Company was entitled to or party to, as the case may be and such Governmental Authorities or third party shall, pursuant to sanction of this Scheme by Adjudicating Body, deem to take on record in the name of the Transferee Company. The Transferee Company shall make applications to any Governmental Authorities or any third persons (as the case may be) as may be necessary in this behalf.

8.14 Without prejudice to the generality of the foregoing Clause, it is clarified that, by virtue of the sanction of this Scheme by the NCLT and by virtue of the operation of Law, the interest in the production sharing contracts, revenue sharing contracts and joint operating agreements (including participating interests / operatorship therein) shall be vested or deemed to have been vested in the Transferee Company as an integral part of the undertaking of the Transferor Company. The Transferee Company and the Transferor Company shall in furtherance to the aforesaid, make applications as necessary to the Central Government and/or the State Governments and/or any Governmental Authority, or other person as required under the production sharing contracts, revenue sharing contracts or such other documents executed by the Transferor Company.

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8.15 Without prejudice to the other provisions of this Scheme and notwithstanding the fact that the vesting of the Transferor Company occurs by virtue of this Scheme itself, the Transferee Company may, at any time after the Scheme coming into effect in accordance with the provisions hereof, if so required under any Law or otherwise, execute deeds (not limited to deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract, arrangements to which the Transferor Company was a party or any writing as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities and compliances as required by the Transferor Company.

8.16 The Transferee Company shall be entitled to the benefit of all insurance policies which have been issued in respect of the Transferor Company and the name of the Transferee Company shall be substituted as insured in the policies as if the Transferee Company was initially a party.

8.17 The Transferee Company shall be entitled to all the development rights, if any, held in the name of the Transferor Company and the name of the Transferee Company shall be substituted in the document related there to.

8.18 Upon the Scheme becoming effective, all investments, reserves, provisions, funds, goodwill licenses, registrations, copyrights, patents, trademarks, tradenames, service marks, copyrights, logos, corporate names, brand names, domain names, applications, renewals in connection therewith, and software and website content (including text, graphics, images, audio, video and data), trade secrets, confidential business information and other proprietary information and interests of the Transferor Company shall, from Appointed Date, stand transferred to and vested in the Transferee Company, without any further act, instrument or deed.

8.19 With effect from the Appointed Date, all debts, liabilities and obligations, whether or not provided for in the books of accounts and whether disclosed or undisclosed in the balance

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sheet of the Transferor Company, as on the close of the business on the day immediately preceding the Appointed Date, shall become the debts, liabilities, duties and obligations of the Transferee Company. Upon the Scheme coming into effect, the Transferee Company shall, in relation to all debts, liabilities and obligations provided for and disclosed or undisclosed in the books of accounts and / or balance sheet of the Transferor Company, meet, discharge and satisfy the same to the exclusion of the Transferor Company.

8.20 With effect from the Appointed Date, and subject to the provisions of the Scheme, the liabilities of the Transferor Company including, but not limited to all secured and unsecured debts, sundry creditors, liabilities (including contingent liabilities), and all duties and obligations (including any guarantees, indemnities, letter of credit or any other instrument or arrangement which may give rise to a contingent liability in whatever form) of every kind, nature and description whatsoever and howsoever arising, raised or incurred or utilized for its business activities and operations, shall, pursuant to the sanction of this Scheme by the Adjudicating Body and under the provisions of Sections 230 to 232 read with Section 66 and other applicable provisions, if any, of the Act, without any further act, instrument or deed or matter or thing be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company along with any charge, Encumbrance, lien or security thereon, and the same shall be assumed by the Transferee Company to the extent they are outstanding on the Effective Date so as to become as and from the Appointed Date, the liabilities of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company, without any consent of any third party or other person who is a party to the contract or arrangements by virtue of which such liabilities have risen, in order to give effect to the provisions of this Clause. Further, all the existing credit facilities which are sanctioned to the Transferor Company by the bankers, financial institutions and any third party that are subsisting as on the Appointed Date shall, upon the Scheme becoming effective, without any further act, instrument or deed, be deemed to have been transferred to and shall be available for use by the Transferee Company, as if the same had originally been sanctioned to the Transferee Company.

8.21 Where any such debts, loans raised, liabilities, duties and obligations of the Transferor Company as on the Appointed Date have been discharged or satisfied by the Transferor Company after the Appointed Date and prior the Effective Date, such discharge or satisfaction shall be deemed to be for and on account of the Transferee Company.

8.22 The transfer and vesting of the Transferor Company as aforesaid, shall be subject the existing securities, charges, hypothecation and mortgages, if any, subsisting over or in respect of the property and assets or any part thereof of the Transferor Company, provided however, any reference in any security documents or arrangements, to which the Transferor Company is a party, wherein the assets of the Transferor Company have been or are offered or agreed to be offered as security for any financial assistance or obligations, shall be construed as reference only to the assets pertaining to the Transferor Company as are vested in the Transferee Company by virtue of this Scheme, to the end and intent that such security, charges, hypothecation and mortgage shall not extend or be deemed to extend, to any of the other assets of the Transferee Company, provided further that the securities, charges, hypothecation and mortgages (if any subsisting) over and in respect of assets or any part thereof of the Transferee Company shall continue with respect to such assets or part thereof and this Scheme shall not operate to enlarge such securities, charges, hypothecation or mortgages to the end and intent that such securities, charges hypothecation and mortgages shall not extend or be deemed to extend, to any of other assets of the Transferor Company vested in the Transferee Company. Notwithstanding anything contrary provided in this Scheme, it is clarified that this Scheme shall not operate to enlarge the security for any loan, deposit or facility created by the Transferor Company which shall vest in the Transferee Company by virtue of the vesting of the Transferor Company with the Transferee Company and the Transferee Company shall not be obliged to create any further or additional security therefore after the Amalgamation has become operative.

8.23 Without prejudice to the foregoing provisions, the Transferor Company and the Transferee Company may execute any instruments or documents or do all the acts and deeds as may be considered appropriate including the filing of necessary particulars and /or modification(s) of

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charge(s), with the respective ROC and any other Governmental Authorities to give formal effect to the above provisions, if required.

8.24 All inter party transactions between the Transferor Company and the Transferee Company as may be outstanding on the Appointed Date or which may take place subsequent to the Appointed Date and prior to the Effective Date, shall be considered as intra party transactions for all purposes from the Appointed Date and shall stand automatically extinguished. Any loans or other obligations if any, due inter se i.e. between the Transferor Company and the Transferee Company as on the Appointed Date, and thereafter till the Effective Date, shall stand automatically extinguished.

8.25 All existing and future incentives, benefits, brought forward losses (if any), book unabsorbed depreciation, tax unabsorbed depreciation, unavailed credits including Minimum Alternate Tax (MAT) credits and exemptions and other statutory benefits, including in respect of income tax, excise (including CENVAT) customs, central goods and services tax (CGST), state goods and services tax (SGST), integrated goods and service tax (IGST), value added tax, sales tax, service tax etc. to which the Transferor Company is entitled to in terms of the various statutes / schemes / policies, etc. of union and State Governments shall be available to and shall vest in the Transferee Company upon this Scheme becoming effective. Accordingly, upon the Scheme becoming effective, the Transferee Company is expressly permitted to revise, if it becomes necessary, its Income tax returns, Sales tax return, excise & CENVAT returns, service tax returns, GST, other tax returns, and to claim refunds/ credits, pursuant to the provisions of this Scheme. The Transferee Company is also expressly permitted to claim refunds and credits in respect of any transaction between or amongst the Transferor Company and the Transferee Company.

8.26 All taxes, (including income-tax but not limited to advance tax, tax deducted at source, minimum alternate tax, withholding tax, tax on book profits, banking cash transaction tax, securities transaction tax, taxes withheld/ paid in a foreign country, value added tax, sales tax, service tax, goods and services tax, SGST, IGST, customs and duties, etc.), including any interest, penalty, surcharge and cess, if any, payable by or refundable to the Transferor

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Company, including all or any refunds or claims shall be treated as the tax liability or refunds/ claims, as the case may be, of the Transferee Company, and any tax incentives, advantages, privileges, exemptions, brought forward book losses, credits, remissions, reductions, etc., as would have been available to the Transferor Company, shall pursuant to this Scheme becoming effective, be available to the Transferee Company.

8.27 Any refund, under the IT Act, CGST, SGST, IGST, services tax laws, excise duty laws, central sales tax, GST laws, applicable state value added tax laws or other Applicable Laws / regulations dealing with taxes / duties / levies due to the Transferor Company consequent to the assessment made on the Transferor Company (including any refund for which no credit is taken in the accounts of the Transferor Company) as on the date immediately preceding the Appointed Date shall also belong to and be received by the Transferee Company, upon this Scheme becoming effective.

8.28 Any tax liabilities under the IT Act, CGST, SGST, IGST, service tax laws, excise duty laws, central sales tax, applicable state value added tax laws or other Applicable Laws/regulations dealing with taxes / duties / levies of the Transferor Company to the extent not provided for or covered by tax provision in the accounts made as on the date immediately preceding the Appointed Date shall be transferred to the Transferee Company.

8.29 All bank accounts operated or entitled to be operated by the Transferor Company shall be deemed to have transferred and shall stand transferred to the Transferee Company and names of the Transferor Company shall be substituted by the name of the Transferee Company in the bank's records.

8.30 All cheques and other negotiable instruments, payment orders received or presented for encashment which are in name of the Transferor Company after the Effective date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company if presented by the Transferee Company. Similarly, the bankers of the Transferee Company shall honour all cheques issued by the Transferor Company for payment after the Effective Date. If required, the Transferor Company shall allow maintaining of banks

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accounts in the name of the Transferor Company by the Transferee Company for such time as may be determined to be necessary by the Transferor Company and the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Transferor Company. It is here by expressly clarified that any legal proceedings by or against the Transferor Company in relation to cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Company shall be instituted, or as the case may be, continued, by or against; the Transferee Company after the coming into effect of the Scheme.

8.31 Without prejudice to the generality of the foregoing, all lease agreements and leave and license agreements, management agreements, etc., as the case may be, to which the Transferor Company is a party, and having effect immediately before the Effective Date, shall remain in full force and effect on the terms and conditions contained therein in favour of or against the Transferee Company and may be enforced fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obligee thereto or thereunder; and the respective lessees and the licensees, as the case may be, shall continue to be in possession of the premises subject to the terms and conditions contained in the relevant lease agreements or leave and license agreements, as the case may be. Further, all the rights, title, interest and claims of the Transferor Company in any properties including leasehold/licensed properties of the Transferor Company including but not limited to security deposits and advance or prepaid lease or license fee, shall, on the same terms and conditions, be transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company automatically without requirement of any further act or deed. The Transferee Company shall continue to pay rent or lease or license fee as provided for under such agreements, and the Transferee Company shall continue to comply with the terms, conditions and covenants thereunder.

8.32 Pursuant to the order of the Adjudicating Body, the Transferee Company shall file the relevant notifications and communications in relation to assignment, transfer, cancellation, modification, or Encumbrances of any license / certificate and any other registration including but not limited to CGST, SGST, IGST, value added tax, excise, service tax, income tax, ESI

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company registration number, PF. etc. if any, for the record of the appropriate authorities which shall take them on record.

8.33 From the date on which the Board of Directors of both the Transferor Company and the Transferee Company approve this Scheme until the Effective Date, both the Transferor Company and the Transferee Company shall carry on their respective business with reasonable diligence and business prudence in the ordinary course, in accordance with Applicable Law and as mutually agreed between both the Transferor Company and the Transferee Company in writing. Notwithstanding anything to the contrary contained in this Scheme, the Transferor Company and the Transferee Company shall be able to raise capital as it may deem fit during the period between the approval of the Scheme by the Board of the Transferor Company and the Transferee Company and the Effective Date, unless otherwise agreed between both the companies in writing.

Further, nothing contained in this Scheme shall restrict or affect the powers of the Transferor Company and the Transferee Company to appoint and engage new employees from time to time on such terms and conditions as they may deem fit. Both the Transferor Company and the Transferee Company shall also be entitled to formulate, grant, continue, or extend employee stock options schemes/plans, grant stock options, and issue shares pursuant to such grants to their existing as well as new employees, in accordance with Applicable Laws and regulations.

9. CANCELLATION OF THE EXISTING EQUITY SHARE CAPITAL OF THE TRANSFEREE COMPANY

9.1 Upon Part II of this Scheme becoming effective, the investment in equity shares of the Transferee Company held by the Transferor Company shall, without further act, application, or deed, stand cancelled without any payment. Accordingly, the paid-up share capital of the Transferee Company shall stand reduced to the extent of the face value of the shares held by the Transferor Company.

9.2 The cancellation of equity share capital of the Transferee Company shall be effected as an integral part of this Scheme without having to follow the process under Section 66 of the Act

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separately and the order of the Adjudicating Body sanctioning the Scheme shall be deemed to be also the order under Section 66 of the Act for the purpose of confirming the reduction. The reduction would not involve either a diminution of liability in respect of unpaid share capital or payment of paid-up share capital to the shareholders and the provisions of Section 66 of the Act will not be applicable. The Transferee Company shall not be required to add "And Reduced" as suffix to its name consequent to such reduction.

10. CONSIDERATION

10.1 Upon the Scheme becoming effective and in consideration of the Merger by Absorption and vesting of the business of the Transferor Company with the Transferee Company, in accordance with this Scheme, the Transferee Company shall, without any further application or deed, issue and allot to shareholders of the Transferor Company whose names appear in the register of members of the Transferor Company on the Record Date or to such of their heirs, executors, administrators or the successors-in-title, as the case may be recognized by the Board of Directors, in the following manner:

"117 (One hundred and Seventeen) fully paid-up Equity Shares of Rs. 10/- each of the Transferee Company shall be issued and allotted for every 10 (Ten) fully paid-up Equity Shares of Rs. 10/- each of the Transferor Company." ("Share Exchange Ratio")

10.2 If any member becomes entitled to any fractional shares, entitlements or credit on the issue and allotment of the New Shares by the Transferee Company in accordance with Clause 10.1 of Part II above, the Board of the Transferee Company shall consolidate all such fractional entitlements and shall round up the aggregate of such fractions to the next whole number and issue consolidated New Shares to a trustee nominated by the Transferee Company (the **"Trustee"**), who shall hold such New Shares with all additions or accretions thereto in trust for the benefit of the respective shareholders, to whom they belong and their respective heirs, executors, administrators or successors for the specific purpose of selling such equity shares in the market at such price or prices and on such time or times within ninety (90) days from the date of allotment, as the Trustee may in its sole discretion decide and on such sale, pay to the Transferee Company, the net sale proceeds (after deduction of applicable taxes and costs

incurred) thereof and any additions and accretions, whereupon the Transferee Company shall, subject to withholding tax, if any, distribute such sale proceeds to the concerned shareholders of the Transferor Company in proportion to their respective fractional entitlements.

10.3 The New Shares, to be issued by the Transferee Company pursuant to Clause 10.1 above, shall be issued and allotted to all the members of the Transferor Company in Demat form, i.e., dematerialized shares into the account in which shares of the Transferor Company are held or such other account as is intimated in writing by the shareholders to the Transferor Company and / or its registrar provided such intimation have been received by the Transferor Company and/or its registrar at least 7 (Seven) days before the Record Date. All those shareholders who hold shares of the Transferor Company in physical form shall also receive the equity shares to be issued by the Transferee Company, in dematerialized form provided the details of their account with the depository participant are intimated in writing to the Transferor Company and / or its registrar provided such intimation has been received by the Transferor Company and/or its registrar at least 7 (seven) days before the Record Date. If no such intimation is received from any shareholder who holds shares of the Transferor Company in physical form 7 (seven) days before the Record Date or if the details furnished by any shareholder do not permit electronic credit of the shares of the Transferee Company, the Transferee Company shall deal with the relevant equity shares in such manner as may be permissible under the Applicable Law, including by way of issuing the corresponding equity shares in dematerialised form to the Trustee who shall hold these equity shares in trust for the benefit of such shareholder. The equity shares of the Transferee Company held by the Trustee of Transferee Company for the benefit of the shareholder shall be transferred to the respective shareholder once such shareholder provides details of his/her/its demat account to the Trustee of Transferee Company, along with such other documents as may be required by the Trustee of Transferee Company. The respective shareholders shall have all the rights of the shareholders of the Transferee Company, including the right to receive dividend, voting rights and other corporate benefits, pending the transfer of equity shares from the Trustee of Transferee Company.

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10.4 In the event of there being any pending and valid share transfer, whether lodged or outstanding, of any shareholder of the Transferor Company, the Board of Directors or any committee thereof, of the Transferor Company shall be empowered in appropriate cases, even subsequent to the Record Date as the case may be to effectuate such a transfer in the Transferor Company as if such changes in registered holder were operative as on the Record Date, in order to remove any difficulties to the Transferor Company or the Transferee Company, as the case may be, in respect of such shares.

10.5 In the event the New Shares are required to be issued and alloted to such shareholders of the Transferor Company, being non-resident, the issue of such New Shares shall be in accordance with the provisions of the Foreign Exchange Management Act, 1999 and the applicable rules and regulations made thereunder (for the time being in force, including, any statutory modifications, re-enactments or amendments made thereto from time to time).

10.6 The New Shares to be issued and allotted by the Transferee Company, in terms of this Scheme shall be subject to the provisions of the Memorandum of Association and Articles of Association of the Transferee Company. The New Shares to be issued and allotted shall rank *pari passu* in all respects with existing shares of the Transferee Company, including in respect of dividends, if any, that may be declared by the Transferee Company, on or after the Effective Date.

10.7 The issue and allotment of the New Shares in the Transferee Company to the relevant shareholders of the Transferor Company as provided in the Scheme shall be carried out and the same would not require following of the procedure laid down under Section 42 and 62 of the Companies 2013 and any other applicable provision of the relevant Act.

10.8 The New Shares to be issued by the Transferee Company under this Scheme pursuant to Clause 10.1 in respect of any equity shares of the Transferor Company which are held in abeyance under the provision of Section 126 of the Act and other applicable provisions of relevant Act shall pending allotment or settlement of dispute by the order of court or otherwise also be held by the Transferee Company in abeyance.

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10.9 For the purpose of issue of the New Shares to the equity shareholders of the Transferor Company, the Transferee Company may, if and to the extent required, apply for and obtain the required statutory approvals from the Governmental Authorities for the issue and allotment by the Transferee Company of such New Shares.

10.10 Subsequent to the sanction of the Scheme, the Transferee Company shall make an application for listing and/ or admission for trading the New Shares on Stock Exchanges in which the shares of the Transferee Company are listed in pursuance to the relevant regulations including, LODR read with the SEBI Circulars. The Transferee Company shall enter into such arrangements and give such confirmations and/or undertakings as may be necessary in accordance with the Applicable Laws or regulations for the Transferee Company for complying with the formalities / requirements of Stock Exchanges.

10.11 The shares allotted pursuant to the Scheme shall remain frozen in the depositories system until listing/ trading permission is given by Stock Exchanges.

10.12 There shall be no change in the shareholding pattern or control in the Transferor Company between the Record Date and the listing of the shares of the Transferee Company, which are issued to shareholders of the Transferor Company, by the relevant Stock Exchanges in terms of this Scheme.

10.13 The Transferor Company and the Transferee Company shall duly comply with various provisions of the LODR read with the SEBI Circulars.

10.14 The New Shares to be issued by the Transferee Company pursuant to Clause 10.1 of Part II of the Scheme above in lieu of such equity shares of the Transferor Company as are subject to lock-in pursuant to Applicable Law as on the Effective Date, shall remain locked-in for the remaining duration as and to the extent required under Applicable Law.

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10.15 In the event that the Transferor Company and the Transferee Company restructure their equity share capital by way of share split/ consolidation/ issue of bonus shares during the pendency of the Scheme, the Share Exchange Ratio and the stock options, shall be adjusted accordingly to take into account the effect of any such corporate actions.

11. EMPLOYEE STOCK OPTIONS

11.1 In respect of the Transferor Company Stock Options granted by the Transferor Company under the Transferor Company ESOP Plans and which have vested in accordance therewith but which are outstanding and have not been exercised as on the Record Date, upon the effectiveness of the Scheme, all such Transferor Company Stock Options shall automatically stand cancelled and the Transferee Company shall issue Transferee Company Stock Options to all such holders of the Transferor Company Stock Options, taking into account the Share Exchange Ratio. The exercise price payable for such Transferee Company Stock Options shall be as adjusted after taking into account the effect of the Share Exchange Ratio.

11.2 In respect of the Transferor Company Stock Options granted by the Transferor Company under the Transferor Company ESOP Plans but which remain outstanding and unvested as on the Record Date, upon the effectiveness of the Scheme, all such Transferor Company Stock Options shall automatically stand cancelled and the Transferee Company shall issue Transferee Company Stock Options to all such holders of the Transferor Company Stock Options, taking into account the Share Exchange Ratio. The exercise price payable for such Transferee Company Stock Options shall be as adjusted after taking into account the effect of the Share Exchange Ratio.

11.3 It is hereby clarified that in relation to the Transferee Company Stock Options granted in accordance with this Scheme, the period during which the Transferor Company Stock Options granted by the Transferor Company were held by or deemed to have been held by the holders of the Transferor Company Stock Options shall be taken into account for determining the minimum vesting period required under Applicable Law or agreement or deed for stock options granted under the Transferee Company Stock Options Plan, as the case may be.

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11.4 The Transferee Company Stock Options to be issued pursuant to Clause 11.1 and Clause 11.2 above may be issued by the Transferee Company either under any of its existing Transferee Company ESOP Plans or a revised stock options plan for the employees of the Transferee Company and the holders of the Transferor Company Stock Options or under a separate employee stock options plan created by the Transferee Company inter alia for the purpose of granting stock options to the holders of the Transferor Company Stock Options pursuant to this Scheme ("Transferee Company Stock Option Plan"), on the same terms and conditions (including vesting period and conditions), as set out in the Transferor Company ESOP Plans, or such other terms and conditions as approved by the Transferee Company which are no less favorable than those provided under the Transferor Company ESOP Plans, subject to Applicable Laws. Further, any fractional entitlements, if any, arising pursuant to the applicability of the Share Exchange Ratio as set out in Clause 11.1 and Clause 11.2 above shall be rounded off to the nearest higher integer.

11.5 The grant of Transferee Company Stock Options pursuant to this Scheme shall be effected as an integral part of the Scheme and the approval of relevant Governmental Authorities and the shareholders of the Transferee Company to this Scheme shall be deemed to be their consent in relation to all matters pertaining to the Transferee Company Stock Option Plan, including without limitation, for the purposes of creating the Transferee Company Stock Option Plan and / or modifying the Transferee Company Stock Option Plan (including increasing the maximum number of equity shares that can be issued consequent to the exercise of the Transferee Company Stock Options granted under the Transferee Company ESOP Plans, and / or modifying the exercise price of the Transferee Company Stock Options under the Transferee Company Stock Option Plan), and all related matters. No further approval of the shareholders of the Transferee Company would be required in this connection under Applicable Law.

11.6 The Board of Directors of the parties or any of the committee(s) thereof, including the ESOP compensation committee (by whatever name called), if any, shall take such actions and execute such further documents as may be necessary or desirable for the purpose of giving effect to the provisions of this clause of the Scheme.

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12. AMENDMENT IN CHARTER DOCUMENTS OF THE TRANSFEREE COMPANY

12.1 With effect from the Effective Date, the Memorandum of Association of the Transferee Company shall be deemed to be altered and amended, without any further act or deed, to include the following clause in Clause III of the Memorandum of Association of the Transferee Company:

Main Object Clause of the Business

1. To undertake and carry in India and abroad, the business of producers, suppliers, buyers, sellers, dealers, traders, importers, exporters, miners, explores, drillers, distributors, consultants, surveyors, values, advisors of all forms of energy products and resources conventional and/or non-conventional, renewable. on land and/ or off shore such as Oil, Gas, Hydro Carbon Products, Air, Solar, Thermal, Hydel, Tidal.

2. To acquire by purchase, lease, sell or otherwise the land for farming and to establish and run farms and carry on the business of agriculture, horticulture, dairy farming, animal husbandry, importing, expo1iing and dealing in all kinds of product of such business and processing, storage, transport and miscellaneous logistics activities associated with the supply chain of the products produced, manufactured, or grown and to focus on research & development and deployment of technology based products and services, weather on mobile, or computer or machinery to the business of agriculture act as dealers, retailers, distributers etc of agricultural products and technology used in farming and to render technical services, consultancy services, training, research and development and to invest or subscribe for purchase or otherwise acquire and sell, dispose of, exchange, hold and otherwise deal in shares or other securities of other agricultural and related companies.

Other Object of Business

1. To carry on the business of arranging or providing assistance independently or in association with any person in India or abroad, Government or any other agencies, whether incorporated or not, in the form of lending or advancing money by way of a loan (including long term loan), working cap overdraft, cash credit, refinancing, equity or quasi-equity

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financing or in any other form, whether with or without security to institutions, banks, bodies corporate (whether or not incorporated), firms, associations authorities, bodies, trusts, agencies, societies or any other person or persons, engaged in the business of infrastructure of any nature or kind whatsoever, including those referred to in the main Object Clause, retail business, media and entertainment business, equipment manufacturer of any kind, exploration of oil and gas, steel, cement, mining activities and in search, production, refining, processing etc. of coal, tin, ore, oil or other minerals, ferrous and non-ferrous or the products, co-products, by-products, alloy and derivatives thereof.

2. To carry on all or any of the business of generators, suppliers, distributors, transformers, converters, transmitters, processors, developers, stores, procures, carriers and dealers in electricity, all forms of energy and such product and by-products derived from such business including without limitation, steam, fuels ash, into bricks and any product derived from or connected with any other form of energy, including without limitation to conventional such as heat, thermal, Hyde and/ or from non-convention sources such as tidal wave, wind, solar, geothermal, biological, biogas and CBM or any of the business of purchasers, creators, generators, manufactures, producers, procures, suppliers, distributors, converters, processors, developers, stores, carriers and dealers in , design or otherwise acquire to use, sell or transfer or otherwise dispose of electricity ,steam, oil, gas, hydro or tidal, water, wind, solar, hydrocarbon fuels, handling equipment and machinery and fuel handling facilities thereto and an products or by products derived from any such business (including without limitation, distillate fuel oil and natural gas whether in liquefied or vaporized form),or other energy of every kind and description and stoves, cookers, heaters, geysers, biogas, plants, and steam turbines, boilers, generators, alternators, diesel generating sets and other energy devices and appliances of every kind and description.

12.2 It is hereby clarified that an increase in authorised share capital of the Transferee Company, if required, shall be affected as an integral part of Scheme without any further act or deed on the part of the Transferee Company and consent of the shareholders to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment.

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PART III

DISSOLUTION OF TRANSFEROR COMPANY, GENERAL CLAUSES AND TERMS AND CONDITIONS APPLICABLE TO THE SCHEME

13. DISSOLUTION OF THE TRANSFEROR COMPANY

13.1 Upon the Scheme coming into effect, the Transferor Company shall without any further act or deed, stand dissolved without winding up.

14. ACCOUNTING TREATMENT

Upon the Scheme becoming effective, notwithstanding anything contrary contained in any other clauses of the Scheme the Transferee Company shall give effect to the accounting treatment of amalgamation in its books of accounts in accordance with principles of 'reverse acquisition' as stated in Ind AS 103, Business Combinations ('Ind AS 103'), read with 'Pooling of Interest Method' as laid down in Appendix C (Business Combinations of entities under common control) of Ind AS 103 notified under Section 133 of the Act read with the Companies (Indian Accounting Standards) Rules, 2015, as amended, relevant pronouncements and other generally accepted accounting principles in India, as below:

14.1 All the assets, liabilities, and reserves of the Transferor Company shall stand transferred to and vested in the Transferee Company pursuant to the Scheme and shall be recorded by the Transferee Company in its books of accounts at their respective carrying amounts and in the same form as appearing in the standalone financial statements of the Transferor Company.

14.2 The Transferee Company shall measure its own assets, liabilities and reserves at the carrying values and in the same form, before eliminations, as appearing in the consolidated financial statements of the Transferor Company, being the holding company of the Transferee Company and determined to be the accounting acquirer as per Ind AS 103 under this Scheme.

14.3 The inter-company balances including, loans and advances if any, between the Transferor Company and the Transferee Company shall stand cancelled and there shall be no further obligation/outstanding in that behalf.

14.4 The value of investment held by the Transferor Company in the Transferee Company and the face value of the equity shares of the Transferee Company held by Transferor Company shall stand cancelled pursuant to the Scheme and there shall be no further obligation/outstanding in that behalf.

14.5 The face value of New Shares issued by the Transferee Company to the shareholders of Transferor Company pursuant to Clause 10.1 of the Scheme shall be credited to the equity share capital of the Transferee Company.

14.6 The difference, if surplus, between: (a) the book value of assets, liabilities and reserves of both Transferor Company and the Transferee Company recorded/measured in accordance with Clauses 14.1, 14.2 and as adjusted by Clause 14.3 and 14.4 above, and (b) the new equity share capital issued by the Transferee Company according to Clause 14.5 shall be recorded as "Capital Reserve" and shall be presented separately from other capital reserves of the combined entity with a disclosure of its nature and purpose in the notes to the financial statements of the combined entity. If the difference is a deficit, then the same shall be adjusted against the capital reserves and revenue reserves of the combined entity in that order and the balance amount remaining, if any, shall be debited to "Amalgamation Adjustment Deficit Account" presented under "Other Equity".

14.7 In case of any differences in the accounting policies between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferor Company shall prevail and the impact of the same will be quantified and adjusted in the revenue reserves of the combined entity to ensure that the financial statements reflect the financial position on the basis of consistent accounting policies.

14.8 The comparative financial information in the financial statements of the Transferee Company shall be restated as if the amalgamation under the Scheme had occurred from the beginning of the preceding period presented in the financial statements of the combined entity or from

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the date when the common control was established between the Transferee Company and Transferor Company, whichever is later, irrespective of the actual date of the combination.

15. STAFF, WORKMEN AND EMPLOYEES

15.1 On the Scheme coming into effect, all the employees of the Transferor Company in service on such date shall be deemed to have become employees of the Transferee Company with effect from the Effective Date without any break in their service and on the basis of continuity of service and the terms and conditions of their employment with the Transferee Company; shall not be less favourable than those applicable to them with reference to the Transferor Company on the Effective Date. The position, rank and designation of the employees would however be decided by the Transferee Company. Any salary, compensation, fringe benefits, perquisites and other kind of consideration given by the Transferor Company from the Appointed Date till the Effective Date will be deemed to have been paid by the Transferee Company.

15.2 In so far as the provident fund, gratuity fund or any other special fund created or existing for the benefit of the employees of the Transferor Company are concerned, upon the Scheme coming into effect, the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever in relation to the administration or operation of such fund or funds or in relation to the obligation to make contributions to the said fund or funds in accordance with the provisions thereof as per the terms provided in the respective trust deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Company in relation to such fund or funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees employed in the Transferor Company under such funds and trusts shall be protected, subject to the provisions of Law for the time being in force. The contributions made by the Transferor Company in respect of its employees to such fund or funds for any period subsequent to the Appointed Date shall be deemed to be contributions made by the Transferee Company. It is clarified that the services of the employees of the Transferor Company will be treated as having been continuous for the purpose of the said fund or funds.

16. CONTRACTS, DEEDS AND STATUTORY CONSENTS

16.1 Subject to the provisions of this Scheme, all contracts, deeds, bonds agreements, arrangements and other instruments of whatsoever nature of the Transferor Company which are subsisting or having effect immediately before the Effective Date shall be in full force against or in favour of the Transferee Company and may be enforced as fully and effectively as if, instead of the Transferor Company, the Transferee Company has been a party or beneficiary thereto. The Transferee Company shall, if necessary, to give formal effect to this Clause, enter into and/or issue and or execute deeds, writings or confirmations or enter into arrangement, confirmation or novation to which the Transferor Company is a party.

16.2 The Transferee Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required, under any Law or otherwise, enter into, or issue or execute deeds, writings, confirmations, novations, declarations, or other documents with, or in favour of any party to any contract or arrangement to which the Transferor Company is a party or any writings as may be necessary to be executed in order to give formal effect to the above provisions. The Transferee Company shall be deemed to be authorised to execute any such writings on behalf and in the name of the Transferor Company and to carry out or perform all such formalities or compliances required for the purposes referred to above on the part of the Transferor Company.

16.3 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the relevant Governmental Authorities (including, the court, Tribunal, Debt Recovery Tribunal as the case may be or any other agency, department or other authorities concerned as may be necessary under Law), for such consents, approvals and sanctions which the Transferee Company may require to own and operate all or part of the Transferor Company.

17. VALIDITY OF EXISTING RESOLUTIONS

Upon coming into effect of this Scheme, the resolutions of the Transferor Company including the approvals that may have been obtained by the Transferor Company from its shareholders, and which are valid and subsisting on the Effective Date, as are considered necessary by the Board of Directors of the Transferee Company shall be considered as resolutions of the

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Transferee Company. If any such resolutions have any monetary limits approved under the provisions of the Act or of any other applicable statutory provisions, then the said limits, as are considered necessary by the Board of Directors of the Transferee Company, shall be added to the limits, if any under the like resolutions passed by the Transferee Company.

18. INCREASE OF AUTHORISED SHARE CAPITAL

18.1 Upon the Scheme coming into effect, in accordance with the provisions of Section 232 of the Act the authorized share capital of the Transferor Company of Rs. 6,02,00,000/- (Rupees Six Crores Two Lakhs only) shall stand combined and consolidated with the authorized share capital of the Transferee Company and on the Scheme coming into effect, the authorised share capital of the Transferee Company shall, without any further act, deed or action, stand increased.

18.2 Filing fees and stamp duty, if any, already paid by Transferor Company on its authorized share capital shall be set off and be deemed to have been so paid by Transferee Company on the combined authorized share capital. The Transferee Company shall not be required to pay filing fee and/ or stamp duty to the extent of set off and accordingly, shall be required to pay only the balance filing fee and/ or stamp duty, if any, in relation to the combined authorized share capital after setting off the filing fees and/ or stamp duty already paid by Transferor Company on its authorized share capital.

18.3 In order to suffice for the purpose of issuance of necessary equity shares to the shareholders, including as specified in Clause 10.1 above, it is proposed that the authorized equity share capital of the Transferee Company be further increased by Rs. 42,98,00,000 divided into 4,29,80,000 equity shares of Rs. 10 each aggregating to 9,90,00,000 equity shares of Rs. 10 each.

18.4 Clause V of the Memorandum of Association of the Transferee Company shall, without any further act, instrument or deed, be and stand altered, modified and amended pursuant to Sections 13 and 61 of the Act and other applicable provisions of the Act, as the case may be and be replaced by the following clause:

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"The Authorised Share Capital of the Company is Rs 99,00,00,000/- (Rupees Ninety-Nine Crores Only) divided into 9,90,00,000 equity shares of Rs. 10/- (Rupees Ten only) each".

18.5 It is hereby clarified that an increase in authorised share capital of the Transferee Company, if required, shall be affected as an integral part of Scheme without any further act or deed on the part of the Transferee Company and consent of the shareholders to the Scheme shall be deemed to be sufficient for the purposes of effecting this amendment. Pursuant to this Scheme, the Transferee Company shall file requisite forms with the relevant ROC to give effect to the increase in its authorised share capital and payment of requisite fee and duty, as applicable.

18.6 In case the authorized share capital of the Transferee Company or Transferor Companies undergoes any change, either as a consequence of any corporate actions or otherwise, then Clause 18.4 and other clauses shall automatically stand modified/ adjusted to take into account the effect of such change to the end and effect that the entire authorised share capital of the Transferor Companies as on the Effective Date shall be consolidated with that of the Transferee Company as on the Effective Date.

18.7 The aforesaid quantum of merging and increase of authorised share capital of the Transferor Company with the Transferee Company and consequent amendment to the Memorandum of Association of the Transferee Company is indicative in nature and the same shall be subject to change due to any increase in authorized share capital of the Transferor Company or the Transferee Company prior to the Appointed Date. Any such increase in the authorised share capital of the Transferor Company or the Transferee Company after the Appointed Date and up to the Scheme coming into effect shall stand automatically added to or clubbed to aggregate authorised share capital of the Transferee Company as set in Clause 18.4 above.

19. LEGAL PROCEEDINGS

19.1 Upon the coming into effect of this Scheme, all and other legal proceedings of whatsoever nature (including civil proceedings, criminal proceedings, any enquiry, investigation, inspection, suit, appeal, applications, legal, taxation or other proceeding of whatever nature before any courts, judicial body, or statutory authority or quasi-judicial authority or tribunal

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NOTARY HEMANT R. JANGAM MUMBAI MAHARASHTRA Regn. No. 4762 Expiry Date 20-10-2027 GOVERNMENT OF INDIA
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or any other authority) under Applicable Laws, by or against the Transferor Company, pending and/or arising before the date on which this Scheme comes into effect and relating to the Transferor Company, and which are capable of being prosecuted, continued and enforced by or against the Transferee Company under the Applicable Laws, shall not abate or be discontinued or be prejudicially affected by reason of this Scheme or by anything contained in this Scheme but shall be prosecuted, continued and enforced by or against the Transferee Company, as the case may be, in the same manner and to the same extent as would or might have been prosecuted, continued and enforced by or against the Transferor Company, as if this Scheme had not been made.

19.2 The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Company, referred to in Clause 19.1 above, transferred to its name as soon as is reasonably possible, with effect from the Effective Date and to have the same continued, prosecuted and enforced by or against the Transferee Company to the exclusion of the Transferor Company. The Transferor Company and/ or persons authorised by the Transferor Company shall assist in making relevant applications as may be required to effect such transfer.

20. CONDUCT OF BUSINESS TILL THE EFFECTIVE DATE

With effect from the Appointed Date and up to the Effective Date:

20.1 The Transferor Company shall carry on its business and activities in the normal course of business till the Effective Date and shall be deemed to have held or stood possessed of and shall hold and stand possessed of all the assets of the Transferor Company for and on account of and in trust for the Transferee Company;

20.2 All the profits or income accruing or arising to the Transferor Company or the expenditure or losses arising or incurred by the Transferor Company shall for all purposes be treated and be deemed to be and accrued as the profits and income or expenditure and losses of the Transferee Company;

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20.3 The Transferor Company shall carry on their business activities with general prudence and shall not, without prior written consent of the Transferee Company alienate, charge or otherwise deal with or dispose off any of its business undertaking or any part thereof (except in the ordinary course of business or pursuant to any pre-existing obligations undertaken by the Transferor Company prior to the Appointed Date);

20.4 The Transferor Company shall also be entitled, pending the sanction of the Scheme, to apply to Central Government, State Governments and all other agencies, departments and statutory authorities concerned, including SEBI, and Stock Exchanges, wherever necessary for such consents, approval and sanctions which the Transferee Company may require including the registration, approvals, exemptions, reliefs, etc., as may be required to be granted under any Law for time being in force for carrying on business by the Transferee Company;

20.5 The Transferor Company shall not make any modification to its capital structure, either by increase, decrease, reclassification, sub-division or reorganization or in any other manner, whatsoever, except by mutual consent of the Board of Directors of the Transferor Company and of the Transferee Company and approval from relevant appropriate authorities;

20.6 All the taxes of the Transferor Company paid or payable by the Transferor Company including income tax refunds receivables, tax credits such as TDS deducted by customers / banks, CENVAT credit balances, Goods and Services Tax credit balance, Goods and services tax refunds due and service tax refunds due. etc, shall be deemed to be taxes paid or payable by or credits available (as the case may be) for the Transferee Company; and

20.7 The Transferor Company shall, with simultaneous intimation to the Transferee Company, take major policy decisions in respect of its assets and liabilities and its present capital structure.

21. POST SCHEME CONDUCT OF OPERATION

21.1 Even after the Scheme becomes effective, the Transferee Company shall be entitled to operate all bank accounts of the Transferor Company and realize all monies and complete and enforce all pending contracts and transactions in respect of the Transferor Company in the name of

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the Transferee Company in so far as may be necessary until the transfer of rights and obligations of the Transferor Company to the Transferee Company under this Scheme is formally accepted by the Transferor Company and the Transferee Company concerned. For avoidance of doubt, it is hereby clarified that with effect from the Effective Date and until such time that the name of the bank accounts of the Transferor Company has been replaced with that of the Transferee Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Company in the name of the Transferor Company in so far as may be necessary.

21.2 Pursuant to the Scheme becoming effective, the Transferee Company is expressly permitted to revise its Financial Statements and returns along with prescribed forms, filings and annexures under the IT Act (including for minimum alternate tax purposes and tax benefits), service tax law, goods & service tax and other tax laws, and to claim refunds and/or credits for taxes paid (including minimum alternate tax, Goods & Service Tax), and to claim tax benefits under the Applicable Laws, and for matters incidental thereto, if required to give effect to the provisions of this Scheme.

21.3 The Transferee Company, shall, at any time after this Scheme becoming effective in accordance with the provisions hereof, if so required under Applicable Law or otherwise, do all such acts or things as may be necessary to either surrender/convert or transfer/obtain the approvals, consents, exemptions, registrations, no-objection certificates, permits, quotas, rights, entitlements, licenses and certificates which were held or enjoyed by the Transferor Company. It is hereby clarified that if the consent of any third party or Governmental Authority, if any, is required to give effect to the provisions of this Clause, the said third party or Governmental Authority shall make and duly record the necessary substitution/endorsement in the name of the Transferee Company pursuant to the sanction of this Scheme, and upon this Scheme becoming effective in accordance with the provisions of the Act and with the terms hereof. For this purpose, the Transferee Company shall file applications/documents, as applicable, with relevant authorities concerned for information and record purposes.

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21.4 Without prejudice to the other provisions of the Scheme, in order to ensure implementation of the provisions of the Scheme and continued vesting of the benefits in favour of the Transferee Company, the Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under Applicable Law or otherwise, unilaterally take all such actions, including execute deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement in relation to which the Transferor Company has been a party, including any filings with the regulatory authorities in order to give formal effect to the above provisions and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Company.

22. RATIFICATION

Except as provided in the clauses above, the Transferee Company shall accept all acts, deeds and things done and executed by and/or on behalf of the Transferor Company on and after the Appointed Date as acts, deeds and things done and executed by and on behalf of the Transferee Company as the case may be.

23. SAVING OF CONCLUDED TRANSACTIONS

The transfer of assets, properties and liabilities and the continuance of proceedings by or against the Transferor Company under Clause 8 of Part II of the Scheme above shall not affect any transaction or proceedings already concluded by the Transferor Company on or prior to the Appointed Date, to the end and intent that the Transferee Company accept and adopt all acts, deeds and things done and executed by the Transferor Company in respect thereto as done and executed on behalf of the Transferee Company.

24. DIVIDENDS

The Transferor Company and the Transferee Company shall be entitled to declare and pay dividends, whether interim and/or final, to their respective shareholders prior to the Effective Date, but only in the ordinary course of business.

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It is clarified that the aforesaid provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any shareholder of the Transferor Company and the Transferee Company to demand or claim any dividends which, subject to the provisions of the Act, shall be entirely at the discretion of the respective Board of Directors of the Transferor Company and the Transferee Company, and if applicable in accordance with the provisions of the Act, be subject to the approval of the shareholders of the Transferor Company and the Transferee Company.

25. APPLICATION TO ADJUDICATING BODY

The Transferor Company and the Transferee Company shall, with all reasonable despatch, make applications/petitions under Sections 230 to 232 read with Section 66 of the Act and other applicable provisions of the Act to the relevant Adjudicating Body, for sanctioning of this Scheme and all matters ancillary or incidental thereto.

26. MODIFICATIONS/ AMENDMENTS TO THE SCHEME

26.1 The Transferor Company and the Transferee Company may, in their full and absolute discretion, assent to any alterations or modifications in this Scheme which the Adjudicating Body may deem fit to approve or impose and may give such directions as they may consider necessary to settle any questions or difficulty that may arise under the Scheme or in regard to its implementation or in any matter connected therewith (including any question or difficulty arising in connection with any deceased or insolvent shareholder of the respective Companies). In the event that any conditions are imposed by the Adjudicating Body which the Transferor Company or the Transferee Company find unacceptable for any reason whatsoever then the Transferor Company and/or the Transferee Company shall be entitled to withdraw from the Scheme.

26.2 For the purpose of giving effect to the Scheme or to any modification thereof, the Board of Directors are hereby authorized to give such directions and / or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

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27. **CONDITIONALITY OF THE SCHEME**

Unless otherwise decided by the Board of the Transferor Company and the Transferee Company this Scheme is specifically conditional upon and subject to:

27.1 Obtaining no-objection/ observation letter from the Stock Exchanges in relation to the Scheme under Regulation 37 of the LODR.

27.2 The approval of the Scheme by the requisite majority of the respective members and/ or creditors (where applicable) and such class of persons of the Transferor Company and the Transferee Company, as required in terms of the applicable provisions of the relevant Act as well as any requirements that may be stipulated by the relevant Adjudicating Body in this respect.

27.3 The approval of the shareholders of Transferor Company and Transferee Company through e-voting and/or other mode as may be required under any Applicable Law and the SEBI circular, after disclosure of all material facts in the explanatory statement (including the applicable information pertaining to the Transferor Company in the format specified for abridged prospectus as provided in Part E of Schedule VI of the ICDR Regulations) or notice or proposal accompanying resolution to be passed sent to the shareholders. The Scheme is conditional upon being approved by the public shareholders of the Transferee Company through e-voting in terms of Part - I(A) - (10)(a) and (10)(b) of SEBI Master Circular No. SEBI/HO/CFD/POD-2 /P/ CIR / 2023/93 dated June 20, 2023 and the Scheme shall be acted upon only if votes cast by the public shareholders of the Transferee Company in favour of the proposal are more than the number of votes cast by the public shareholders of the Transferee Company against it.

27.4 Sanction of the relevant Adjudicating Body, being obtained under Sections 230 to 232 read with Section 66 of the Act and other applicable provisions of the Act, if so required on behalf of the Transferor Company and the Transferee Company.

27.5 The necessary certified copies of the NCLT approving this Scheme under Sections 230 to 232 read with Section 66 of the Act, and other applicable provisions of Act are duly filed with the Registrar of Companies, Maharashtra, Mumbai.

27.6 The Scheme is also conditional upon and subject to the receipt of necessary approvals or deemed approvals from the Governmental Authorities, as may be required.

28. REVOCATION OF THE SCHEME

28.1 In the event of any of the said sanction and approval referred to in the preceding Clause 27 above not being obtained and/or the Scheme not being sanctioned by applicable Adjudicating Body and/or the Order(s) not being passed as aforesaid within such period as may be agreed upon from time to time between the Transferor Company and the Transferee Company (through their respective Board of Directors), this Scheme shall stand revoked, cancelled and be of no effect and in that event, no rights and liabilities whatsoever shall accrue to or be incurred inter se between the Transferor Company and the Transferee Company, or their respective shareholders or employees or any other persons, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, obligation and/or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in this Scheme and / or otherwise arise as per Law. For the purpose of giving full effect to this Scheme, the respective Board of Directors of the Transferor Company and the Transferee Company, are hereby empowered and authorised to agree to and extend the aforesaid period from time to time without any limitations in exercise of their power through and by their respective delegates.

28.2 The Board of Directors of the Transferor Company and the Transferee Company shall be entitled to revoke, cancel and declare the Scheme of no effect if such Board of Director of the Transferor Company and the Transferee Company are of the view that the coming into effect the Scheme in terms of the provisions of this Scheme or filing of the drawn up / certified authenticated orders with any authority could have adverse implication on both/ any of the companies or in case any condition or alteration imposed by the relevant Adjudicating Body or any other authority is not on terms acceptable to them.

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28.3 If any part of this Scheme hereof is invalid, ruled illegal by any court of competent jurisdiction or unenforceable under present or future Laws, then it is the intention of the parties that such part shall be severable from the remainder of the Scheme and the Scheme shall not be affected thereby, unless the deletion of such part shall cause this Scheme to become materially adverse to any party, in which case the parties shall attempt to bring about modification in the Scheme, as will best preserve for the parties the benefits and obligations of the Scheme, including but not limited to such part.

29. COSTS, CHARGES AND EXPENSES CONNECTED WITH THE SCHEME

All costs, charges, taxes including duties, levies and all other expenses of the Transferor Company and the Transferee Company into or in connection with or incidental to this Scheme and matters incidental thereto on or prior to the Effective Date shall be borne by the Transferor Company and the Transferee Company equally.

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NATIONAL COMPANY LAW TRIBUNAL
(MUMBAI BENCH)
CERTIFIED TO BE TRUE COPY
OF THE ORIGINAL

Diary No.: 3757
Date of Application : 08/10/2026
Date Copy Ready : 13/10/2026
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No. of Pages : 50
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Total Fee Paid : 250/-

JR/DR/AR
(Signature & Seal)

Ravi H Passi
Assistant Registrar
National Company Law Tribunal
Mumbai - 400 005.

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